

PUBLIC VERSION

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of

CERTAIN WEARABLE DEVICES

Inv. No. 337-TA-1478

**COMPLAINANTS' MOTION IN *LIMINE* NO. 4 TO EXCLUDE TESTIMONY AND
EVIDENCE REGARDING OURA RING 5 AND [REDACTED]**

GROUND RULE 5.1 CERTIFICATION

Pursuant to Ground Rule 5.1, counsel for Complainants certify that they made reasonable, good-faith efforts to resolve this matter with Respondents before filing this motion. Samsung sent its motion *in limine* topics to Oura on August 20, 2026, and met and conferred on those topics on August 24, 2026. Oura opposes this motion.

TABLE OF CONTENTS

I.	INTRODUCTION	1
II.	LEGAL STANDARDS	3
III.	ARGUMENT	4
A.	Oura’s Contentions Failed to Disclose Ring 5 and [REDACTED] as Noninfringing Redesigns or Alternatives To Be Adjudicated in This Investigation.....	4
B.	Oura Failed To Disclose Its Specific Noninfringement Theories for Ring 5 and [REDACTED] for the ’789 Patent During Fact Discovery	6
C.	No Good Cause Exists for Oura’s Failure to Disclose Ring 5 and [REDACTED] as Noninfringing Alternatives and the Noninfringement Arguments Unique to Those Products	9
D.	Ring 5 and [REDACTED] Are Not Ripe for Adjudication Because They Fail to Meet the <i>Oligosaccharides</i> Factors	9
IV.	CONCLUSION.....	11

TABLE OF AUTHORITIES

Page(s)

Cases

<i>Certain Audio Processing Hardware, Software, & Prods. Containing the Same,</i> Inv. No. 337-TA-1026, Order No. 58, 2017 WL 4216995 (Aug. 15, 2017)	3-4
<i>Certain Blow-Molded Bag-In-Container Devices, Associated Components, & End Prods. Containing or Using Same,</i> Inv. No. 337-TA-1115, Order No. 20, 2019 WL 967848 (Jan. 29, 2019).....	3
<i>Certain Elec. Candle Prods. & Components Thereof,</i> Inv. No. 337-TA-1195, Order No. 21, 2020 WL 5798131 (Sept. 2, 2020)	8
<i>Certain Human Milk Oligosaccharides & Methods of Producing the Same,</i> Inv. No. 337-TA-1120, Comm’n Op., 2020 WL 3073788 (June 8, 2020)	10
<i>Certain Photovoltaic Cells & Products Containing Same,</i> Inv. No. 337-TA-1151, Order. No. 26, 2019 WL 5677982 (Sept. 26, 2019)	8
<i>Certain Portable Battery Jump Starters & Components Thereof (II),</i> Inv. No. 337-TA-1359, Comm’n Op., 2024 WL 4145130 (July 5, 2024).....	10
<i>Certain Replacement Auto. Lamps II,</i> Inv. No. 337-TA-1292, Order No. 27, 2022 WL 3548440 (Aug. 16, 2022)	3
<i>Certain Smart Wearable Devices, Sys., & Components,</i> Inv. No. 337-TA-1468, Order No. 23, at 5-7 (July 6, 2026).....	3
<i>Certain Table Saws Incorporating Active Injury Mitigation Tech. & Components Thereof,</i> Inv. No. 337-TA-965, Order No. 16, at 2 (May 16, 2016)	3-4
<i>Certain Unmanned Aerial Vehicles & Components Thereof,</i> Inv. No. 337-TA-1133, Comm’n Op., 2022 WL 20402976 (Mar. 1, 2022).....	10-11
<i>Certain Video-Capable Laptop, Desktop Computs., Handheld Computs., Tablets, Televisions, Projectors, & Components & Modules Thereof,</i> Inv. No. 337-TA-1448, Order No. 37, at 6 (Mar. 3, 2026) (EDIS Doc. ID 875985)	5-6, 8-9
<i>Certain Wiper Blades,</i> Inv. No. 337-TA-816, Order No. 76, 2013 WL 4782290 (Aug. 15, 2013)	3
<i>ChemFree Corp. v. J. Walter, Inc.,</i> 250 F.R.D. 570 (N.D. Ga. 2007).....	7-8



Statutes

19 C.F.R. § 210.27(f)6, 7

[REDACTED]

Complainants Samsung Electronics Co., Ltd. and Samsung Electronics America, Inc. (collectively, “Samsung”) respectfully move in *limine* to exclude testimony and evidence regarding Oura Ring Generation 5 (“Ring 5”) and Ouraring Inc. and Oura Health Oy’s (collectively, “Oura” or “Respondents”) future, unreleased ring, codenamed “[REDACTED]” from the hearing. This motion specifically requests that Oura and its witnesses be barred from presenting at the hearing any testimony, opinions, or evidence regarding Ring 5 and [REDACTED] as noninfringing alternative products, as Oura failed to disclose Ring 5 and [REDACTED] as noninfringing alternative or redesign products in its contentions during fact discovery and it failed to show that these products were ripe for adjudication.

I. INTRODUCTION

In its July 13, 2026 Motion for Summary Determination of Noninfringement (Motion No. 1468-007) (“MSD”), Oura argued for the first time that Ring 5 and [REDACTED] are alternative products for which it seeks adjudication. Ring 5 was not publicly available until June 2026, after the close of fact discovery, and [REDACTED]. See Exhibit A (May 28, 2026, Forbes Article) (“[y]ou can preorder it right now, for shipping on June 4”); Exhibit B (Oura’s MSD) at 8 (“[REDACTED]”). But throughout fact discovery—when Ring 5 was not yet publicly available and [REDACTED] was (and still is) in development—Oura’s discovery responses and contentions never disclosed those future products as allegedly noninfringing redesigns or alternative products and never disclosed its specific contentions as to why Ring 5 and [REDACTED] do not infringe. Rather, Oura’s only position on Ring 5 and [REDACTED] during fact discovery was that those products did not infringe [REDACTED] ([REDACTED]). This position conveyed to Samsung that Ring 5 and [REDACTED] were not being offered as alternative products or design arounds and gave Samsung no reason to pursue additional discovery or serve contentions specific to Ring 5 and [REDACTED]. Oura announced

[REDACTED]

the release of Ring 5 the day before the close of fact discovery. Rather than disclosing its positions in fact discovery, well before the Ring 5 product release, Oura raised noninfringement theories specific to Ring 5 and [REDACTED] for the first time in the *rebuttal* expert report of its technical expert, Dr. Bobak Mortazavi, and addressed the *Oligosaccharides* factors for the first time *in its MSD*. This sequence of belated disclosures afforded Samsung no meaningful opportunity to investigate or respond. Since Oura failed to comply with its discovery obligations, Samsung submits that any analysis of them should occur in the future, if at all. To be clear, however, each would still fall within the scope of the Notice of Investigation and, thus, any Limited Exclusion Order that should issue.

Any testimony or evidence regarding Ring 5 and [REDACTED] as noninfringing alternative products and related noninfringement theories must therefore be excluded for the following reasons:

First, Oura bore the duty to timely provide its contentions that Ring 5 and [REDACTED] should be adjudicated. Despite knowing about the development of Ring 5 and [REDACTED] since before this case was filed, Oura waited until after the close of both fact and expert discovery to assert Ring 5 and [REDACTED] as alternative products. Thus, Oura deprived Samsung of the ability to obtain discovery and present its own infringement contentions as to these products.

Second, Oura bore the duty to timely provide its contentions that Ring 5 and [REDACTED] do not infringe the '789 Patent. Oura long had the evidence underlying those contentions. As such, Oura had no basis for waiting until rebuttal expert reports to disclose new Ring 5 and [REDACTED] noninfringement theories relating to the '789 Patent.

Third, Oura failed to show that Ring 5 and [REDACTED] are ripe for adjudication under the *Oligosaccharides* factors. Oura represented to Samsung that the Ring 5 and [REDACTED] designs were

[REDACTED]

not finalized, [REDACTED], and [REDACTED]. Oura additionally failed to timely produce discovery sufficient to permit Samsung to analyze infringement of Ring 5 and [REDACTED]

The Ground Rules and Commission Rules exist to prevent precisely this kind of gamesmanship. As such, Oura should be precluded from presenting evidence or eliciting testimony regarding Ring 5 and [REDACTED] as noninfringing alternative products at the hearing.

II. LEGAL STANDARDS

Courts routinely grant in *limine* motions when a party seeks to present evidence and arguments outside the scope of its contention interrogatory responses. *See, e.g., Certain Smart Wearable Devices, Sys., & Components*, Inv. No. 337-TA-1468, Order No. 23, at 5-7 (July 6, 2026) (EDIS Doc. ID 887092) (granting Samsung’s motion in *limine* seeking to preclude certain opinions first disclosed in Oura’s *opening* expert report because Oura had not disclosed them in its contentions); *Certain Replacement Auto. Lamps II*, Inv. No. 337-TA-1292, Order No. 27, 2022 WL 3548440, at *1 (USITC Aug. 16, 2022) (granting motion in *limine* to preclude new opinions because the underlying theories were not disclosed in response to contentions). While experts may reasonably elaborate on a party’s contentions, a party may not wait until expert reports to provide for the first time the bases for its theories. *See Certain Blow-Molded Bag-In-Container Devices, Associated Components, & End Prods. Containing or Using Same*, Inv. No. 337-TA-1115, Order No. 20, 2019 WL 967848, at *1 (USITC Jan. 29, 2019); *see also Certain Wiper Blades*, Inv. No. 337-TA-816, Order No. 76, 2013 WL 4782290, at *5-6 (USITC Aug. 15, 2013) (striking portions of expert report pertaining to references not disclosed in invalidity contentions).

Moreover, “[a] party cannot rely on contentions in its prehearing brief that have not been timely disclosed during discovery.” *See, e.g., Certain Audio Processing Hardware, Software, & Prods. Containing the Same*, Inv. No. 337-TA-1026, Order No. 58, 2017 WL 4216995, at *3-4

[REDACTED]

(USITC Aug. 15, 2017) (striking portions of prehearing brief); *Certain Table Saws Incorporating Active Injury Mitigation Tech. & Components Thereof*, Inv. No. 337-TA-965, Order No. 16, at 2 (USITC May 16, 2016) (EDIS Doc. ID 581248) (striking sections from the pre-hearing brief that included undisclosed invalidity defenses).

III. ARGUMENT

A. **Oura's Contentions Failed to Disclose Ring 5 and [REDACTED] as Noninfringing Redesigns or Alternatives To Be Adjudicated in This Investigation**

The Commission's Notice of Institution of Investigation defined the scope of this investigation as "wearable devices, specifically wearable biosignal interfaces and an operation method thereof as well as wearable electronic devices for detecting biometric information." Notice of Institution of Investigation (EDIS Doc. ID 868875) at 2. Oura never asserted during discovery that Ring 5 or [REDACTED] were somehow materially different from the Oura Ring 4 or did not infringe the asserted patents (even now Oura asserts differences that are only relevant to the '789 Patent). Oura now seeks to inject the Ring 5 and [REDACTED] into this investigation as noninfringing alternative products that do not infringe the '789 patent.

As Samsung noted in its opposition to Oura's MSD, Oura never disclosed Ring 5 and [REDACTED] as noninfringing redesigns or alternative products during fact discovery. *See* Exhibit C (Samsung's Opposition to Oura's MSD) at 10-11. The word "redesign" or "alternative product" appears nowhere in the 349 pages of Oura's supplemental interrogatory response setting forth its non-burden contentions. *Id.*; *see generally* Exhibit D (JX-0061C, Oura's Sixth Supplemental Objections and Responses to Samsung's First Set of Interrogatories, excerpted) (showing an absence of "redesign" and "alternative product" in Oura's final non-burden contentions).

Although Oura identified Ring 5 and [REDACTED] in its April 29, 2026 supplemental noninfringement contentions, in neither those contentions nor anywhere else did Oura identify

[REDACTED]

those two future products as noninfringing redesigns or alternatives to the Accused Products, the Ring 4. *See* Exhibit D at JX-0061C.0012, .0081. To the contrary, Oura’s contentions asserted that Ring 5 (which did not become accessible to the public until early June 2026) and [REDACTED] (which [REDACTED]) would not infringe “the ’359 Patent, the ’677 Patent, the ’675 Patent, and the ’789 Patent for at least *the same reasons as set forth in Oura’s First Supplemental Response to Interrogatory No. 7.*” *Id.* at JX-0061C.0081 (emphasis added). Oura’s First Supplemental Response to Interrogatory No. 7 only addressed Ring 4. *See id.* at JX-0061C.0026-80. In other words, Oura took the position during fact discovery that Ring 5 and [REDACTED] did not infringe the Asserted Patents [REDACTED]. Other than referring back to its prior Ring 4 noninfringement contentions, Oura provided no specific noninfringement contentions for Ring 5 or [REDACTED]. *See* Exhibit C (Samsung’s Opposition to Oura’s MSD) at 10.

Consistent with Oura’s position that Ring 5 and [REDACTED] would be materially the same as the accused Ring 4 products, Oura’s discovery responses also never set forth any contentions regarding how Oura’s unreleased products were ripe for adjudication as redesigns under the *Oligosaccharides* factors. *See* Exhibit E (JX-0056C, Oura’s Third Supplemental Objections and Responses to Samsung’s First Set of Interrogatories, excerpted) at JX-0056C.0012-13. Given Oura’s failure to disclose Ring 5 and [REDACTED] as purported redesigns, Samsung had no opportunity to address those products in its final infringement contentions on May 13, 2026, and before fact discovery closed on May 29, 2026. *See* Order No. 8 (Amending Procedural Schedule) (EDIS Doc ID 881268) at 1-2; *see also* Exhibit C (Samsung’s Opposition to Oura’s MSD) at 15-16.

“It is standard practice during evidentiary hearings to limit a party to the evidence and theories they have disclosed with specificity to the other parties in support of their cases.” *Certain*

[REDACTED]

Video-Capable Laptop, Desktop Computs., Handheld Computs., Tablets, Televisions, Projectors, & Components & Modules Thereof, Inv. No. 337-TA-1448, Order No. 37, at 6 (Mar. 3, 2026) (EDIS Doc. ID 875985) (“*Video-Capable Laptop*”). To the extent that Oura sought adjudication of Ring 5 and [REDACTED] as alternative products, which its pre-hearing brief seeks to do, it had an obligation under the Commission Rules to disclose that position in its responses or seasonably amend its responses to do so. *See* 19 C.F.R. § 210.27(f) (“A party is under a duty seasonably to amend a prior response to an interrogatory... if the party learns that the response is in some material respect incomplete”). Mere “hints” are insufficient. *See Video-Capable Laptop*, Order No. 37 at 6 (stating that “[t]heories of a case upon which a party may be relying cannot be based on ‘hints’”).

Oura’s perfunctory inclusion of Ring 5 and [REDACTED] in its supplemental interrogatory responses thus falls far short of disclosing the extensive Ring 5 and [REDACTED] related testimony, evidence, and theories that Oura now seeks to present at the hearing. *See, e.g.*, Exhibit F (Respondents’ Pre-Hearing Brief, excerpted) at 8, 21, 55-56, 102, 139-143. As the respondents did in *Video-Capable Laptop*, Oura appears to have expected Samsung “to ‘derive’ ... from [this] lean disclosure,” that Oura intended to pursue adjudication of and raise noninfringement arguments for Ring 5 and [REDACTED] Order No. 37 at 6. But as the ALJ determined in *Video-Capable Laptop*, Samsung “would be prejudiced by such a late contention because [Samsung was] not able to test it during discovery.” *Id.*

B. Oura Failed To Disclose Its Specific Noninfringement Theories for Ring 5 and [REDACTED] for the ’789 Patent During Fact Discovery

In addition to its procedural failure to disclose Ring 5 and [REDACTED] as redesigns or alternative products for adjudication, Oura failed to timely disclose its noninfringement theories unique to the Ring 5 and [REDACTED] to the ’789 Patent, which it introduced for the first time in Dr.

[REDACTED]

Mortazavi’s rebuttal expert report, weeks after the close of fact discovery. Samsung discussed this extensively in its opposition to Oura’s MSD. *See* Exhibit C (Samsung’s Opposition to Oura’s MSD) at 6-10.

In his report, Dr. Mortazavi presented a host of new noninfringement theories for Ring 5 and [REDACTED] for the asserted ’789 Patent, which are unique to those two products and not applicable to the accused Ring 4 products. Exhibit G (JDX-0007C, Mortazavi Rebuttal Report), ¶¶ 651-680. For example, Dr. Mortazavi opines that (1) Ring 5 does not meet the claim limitation of “a first insulating layer including a second material different from the first material and forming a first exterior surface” and that (2) [REDACTED] does not meet the claim limitations requiring four PCB portions, with alternating “rigid” and “flexible” portions, [REDACTED]. *Id.*, ¶¶ 655-660, 672-675. None of these theories apply to the accused Ring 4 products. None of those Ring 5 and [REDACTED] specific theories were disclosed by Oura in its contentions or otherwise during fact discovery.

In view of Oura’s undisputed knowledge of its own products and their states of development, Oura had an obligation under the Commission Rules to seasonably disclose Ring 5 and [REDACTED] as noninfringing alternative products and disclose the specific noninfringement theories they intended to raise in connection with those products. *See* 19 C.F.R. § 210.27(f).

While Oura may try to excuse its failure to disclose specific theories for Ring 5 and [REDACTED] on the basis that it produced technical documents for both future products, that excuse does not justify asserting new theories wholly absent from Oura’s contentions. *See ChemFree Corp. v. J. Walter, Inc.*, 250 F.R.D. 570, 573 (N.D. Ga. 2007) (rejecting the defendants’ justification that they shared evidence relevant to their amended contentions with the plaintiff months prior to the amendment and noting that “contentions serve a function far more important than the mere identity

[REDACTED]

and disclosure of potentially relevant evidence: they explain exactly *how* the opposing party will use that evidence” (emphasis in original)); *see also Certain Photovoltaic Cells & Products Containing Same*, Inv. No. 337-TA-1151, Order. No. 26, 2019 WL 5677982, at *2 (USITC Sept. 26, 2019) (ordering that the party that disclosed new contentions the day before the last day of discovery “*shall not* raise the [belated] argument, or even attempt to suggest a similar argument, during the hearing, in expert reports and in witness fact testimony,” reasoning that “the subject matter of the patent, not to mention [the opposing party’s] positions on infringement, were well known to [the party] months before they sought, without leave, to supplement their contentions”) (emphasis in original) (cleaned up). “Allowing such tardy disclosures would go against... ‘facilitat[ing] the speedy, fair, and efficient resolution of patent disputes,’” particularly when “parties are permitted to make initial ‘place holder’ [sic] disclosures regarding infringement or invalidity, then make[] substantial changes or additions to those contentions immediately prior to or after the close of fact discovery.” *ChemFree v. J. Walter*, 250 F.R.D. at 573.

“Parties who disclose their contentions late in an investigation, with the aim of disadvantaging their opponent, take a significant risk of having those contentions stricken.” *Certain Elec. Candle Prods. & Components Thereof*, Inv. No. 337-TA-1195, Order No. 21, 2020 WL 5798131, at *2 (USITC Sept. 2, 2020). Oura knew about Ring 5 and [REDACTED] before the investigation was even filed, Exhibit B (Ouras MSD) at 3-4, and was obligated to timely disclose any noninfringement theories unique to Ring 5 and [REDACTED] so Samsung would have had a fair opportunity to respond. Instead, Oura waited until its June 26, 2026 *rebuttal* expert reports to do so. Exhibit G (JDX-0007C, Mortazavi Rebuttal Report), ¶¶651-680. Permitting Oura to present these untimely arguments regarding noninfringement of Ring 5 and [REDACTED] significantly prejudices Samsung “because [Samsung was] not able to test [these arguments] during discovery.”

[REDACTED]

Video-Capable Laptop, Order No. 37 at 6. Therefore, Oura’s late-disclosed noninfringement theories for the ’789 Patent as they pertain to Ring 5 and [REDACTED] as noninfringing alternative products should be excluded and stricken from this investigation.

C. No Good Cause Exists for Oura’s Failure to Disclose Ring 5 and [REDACTED] as Noninfringing Alternatives and the Noninfringement Arguments Unique to Those Products

No good cause exists for Oura’s belated disclosure of Ring 5 and [REDACTED] as noninfringing redesigns or alternative products. To the contrary, as explained above, Oura knew about the development of these products before this investigation *was even filed*. And by February 2026, Oura produced at least some of the materials in the 1468 Investigation it now seeks to rely on in support of its belated noninfringement theories unique to Ring 5 and [REDACTED] such as the Ring 5 and [REDACTED] CAD files and a stack-up specification. *See* Exhibit B (Oura’s MSD) at 4; (JDX-0007C, Mortazavi Rebuttal Report), ¶ 652. Oura’s expert admitted during his deposition that he treated “the stack-ups” of Ring 5 “as the primary” and used them as the “clear guideline document.” Exhibit H (JDX-0052C, July 8, 2026, Mortazavi Dep. Tr.) at 544:2-18.

Oura was aware of the development of the Ring 5 and [REDACTED] from the outset of this investigation, and it was in possession of the documents it intended to use as support for its belated noninfringement theories regarding these products. It has no excuse for its untimely disclosures, and it should not be able to benefit from this delay—and thereby prejudice Samsung—by being permitted to introduce testimony and evidence regarding Ring 5 and [REDACTED] at the hearing.

D. Ring 5 and [REDACTED] Are Not Ripe for Adjudication Because They Fail to Meet the *Oligosaccharides* Factors

Even if Oura had timely disclosed Ring 5 and [REDACTED] as noninfringing alternative products, as Samsung explained in its Opposition to Oura’s MSD and its Pre-Hearing Brief, Ring 5 and [REDACTED] should still be excluded from adjudication because Oura failed to meet its burden

[REDACTED]

of satisfying three of the four *Oligosaccharides* factors. *See* Exhibit C (Samsung’s Opposition to Oura’s MSD), 12-18; Exhibit I (Samsung’s Pre-Hearing Brief, excerpted) at 14-16; *Certain Human Milk Oligosaccharides & Methods of Producing the Same* (“*Oligosaccharides*”), Inv. No. 337-TA-1120, Comm’n Op., 2020 WL 3073788, at *11 (USITC June 8, 2020).

First, as to importation, Oura’s discovery responses clearly stated that [REDACTED] “will be manufactured in the United States in Fort Worth, Texas.” Exhibit J (JX-0055C, April 22, 2026, Oura’s Responses to Samsung’s Second Set of Interrogatories) at JX.0055C.0013. Oura never corrected its misleading discovery responses, and the parties’ import stipulation, filed after the close of fact discovery, does not change the fact that Samsung had to take Oura’s prior contention on importation at face value during fact discovery. *See* Exhibit K (JX-0074C, June 1, 2026, Joint Stipulation Regarding Importation and Inventory).

Second, as to whether Ring 5 and [REDACTED] are sufficiently fixed, Oura’s corporate witness testimony suggested the opposite—that Ring 5’s design was always evolving and [REDACTED] was [REDACTED]. *See* Exhibit C (Samsung’s Opposition to Oura’s MSD), 14-15; Exhibit I (Samsung’s Pre-Hearing Brief, excerpted) at 15. This failure to provide “fair notice that these products were at issue, or show that these products were sufficiently fixed during fact discovery” warrants declining adjudication. *See Certain Portable Battery Jump Starters & Components Thereof (II)*, Inv. No. 337-TA-1359, Comm’n Op., 2024 WL 4145130, at *26 (USITC July 5, 2024).

Third, as to sufficient discovery, the crucial question is whether “the timing of the production deprived [complainant] of the opportunity to develop infringement contentions, to obtain expert opinions, and to prepare for trial on that product.” *Certain Unmanned Aerial Vehicles & Components Thereof*, Inv. No. 337-TA-1133, Comm’n Op., 2022 WL 20402976, at *35 (USITC

Mar. 1, 2022). This factor weighs decisively against adjudication because Oura failed to timely produce discovery sufficient to permit Samsung to analyze infringement of Ring 5 and [REDACTED]. See Exhibit C (Samsung’s Opposition to Oura’s MSD) at 15. While Oura’s MSD cited the technical materials it produced for Ring 5 and [REDACTED] before the last day of fact discovery, none of those materials provided the information needed to evaluate the relevant internal PCB structures of Ring 5 and [REDACTED] for the ’789 Patent. See *id.* at 18. Oura waited until the last day of fact discovery to finally produce teardown images of Ring 5 and [REDACTED] PCBs, but this was too little too late, as it failed to give Samsung any opportunity to analyze those images before its final infringement contentions were due. See *id.* at 17. Critically, Oura failed to produce the most important technical discovery that Samsung needed to actually assess infringement—physical samples of Ring 5 or [REDACTED] for Samsung to teardown, despite the fact that they were sought in Samsung’s Requests for Production served months before. See *id.* at 16.

Oura’s failure to meet its burden of showing that Ring 5 and [REDACTED] are ripe for adjudication is further support for why Oura should be precluded from presenting any testimony, opinions, or evidence regarding those products as noninfringing alternatives.

IV. CONCLUSION

For the foregoing reasons, Complainants request that any testimony, opinions, or evidence regarding Ring 5 and [REDACTED] as noninfringing alternative products be excluded and stricken in light of Oura’s late-disclosed contentions.

Dated: August 24, 2026

Respectfully submitted,

/s/ D. Sean Trainor

D. Sean Trainor

Renia Zervos

Khanh Leon

Jacob Boesch

O'MELVENY & MYERS

1625 Eye Street

Washington D.C. 20006

Telephone: (202) 383-5300

Ryan K. Yagura

Ben Haber

Nancy Schroeder

Gregory Sefian

Grace McFee

Ohona Chowdhury

O'MELVENY & MYERS LLP

400 South Hope Street

Los Angeles, CA 90071

Telephone: (213) 430-6000

Mark Liang

Bill Trac

Rui Li

Sorin Zaharia

Eric T. Ong

O'MELVENY & MYERS LLP

Two Embarcadero Center, 28th Floor

San Francisco, CA 94111

Telephone: (415) 984-8700

Marc Pensabene

Laura Gore

Caitlin P. Hogan

Nate Legum

Joanne Bae

O'MELVENY & MYERS LLP

1301 Avenue of the Americas, 17th Floor

New York, NY 10019

Telephone: (212) 326-2000

John Kappos

Cason Cole

Frances Mackay



O'MELVENY & MYERS LLP
2801 North Harwood Street, Suite 1600
Dallas, TX 75201
Telephone: (972) 360-1900

Email: OMM-Samsung-Oura@omm.com

*Counsel for Complainants Samsung
Electronics Co., Ltd. and Samsung
Electronics America, Inc.*

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Oura Ring 5 Launch: Preorder Its Thinnest And Most Intelligent Smart Ring

By [Rebecca Isaacs](#), Tech & Electronics Editor. I've tested everything fro...

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Published May 28, 2026, 08:01am EDT

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Oura is taking its next step into smart rings and expanding the ways you can understand your health data with today's Oura Ring 5 launch. The wearable device is smaller and thinner than its predecessor, the Oura Ring 4, and also packs in many new health features that may make it worthwhile for you to upgrade. In addition to tracking your health metrics, the Oura Ring 5 offers GLP-1 insights, proactive blood pressure and nighttime breathing information and more.



Oura just debuted the Oura Ring 5—here's how it differs from the brand's earlier iterations.

ILLUSTRATION: FORBES / PHOTO: RETAILER

The Oura Ring 5 is available for preorder now for \$399, and shipping begins June 4. Here's everything you need to know about the Oura Ring 5, from the latest hardware upgrades to innovative software enhancements—plus all the colors and finishes you can wear.



OURA

Oura Ring 5

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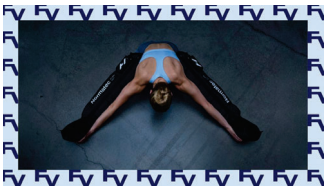
We Tested The Best VR Headsets—This Is The One Most People Should Buy

By Rebecca Isaacs



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By Maya Gandara



A Smaller, Sleeker Redesign

The new Oura Ring 5 is 40% smaller, and the brand's thinnest smart ring to date. The brand reduced its thickness from 3.5mm to an impressive 2.8mm, depending on your ring size. It also reduced its width from 7.9mm to 6mm. The brand says the new model is constructed of nonallergenic titanium and is indistinguishable from a plain ring.

Oura also redesigned its sensing architecture. With more powerful LEDs providing cleaner readings and 12 stronger signal pathways, the brand promises more accurate health metrics tracking over a variety of finger types and skin tones.

Longer Battery Life, Plus A New Charging Dock

There's also the battery life. The Oura Ring 5 can now last one full week before requiring a recharge. You can use the included charging stand, which requires a power cable connection. However, if you want to be able to charge on the go, Oura also offers the Oura Ring Charging Case for an additional \$99. This charging case is made of anodized aluminum to prevent scratches and other wear and tear, and it can hold one month's worth of battery charge.

Live Activity Tracking Comes To The Oura Ring 5

One of the smartest features the Oura Ring 5 can now track is your fitness journey. Now, wearers can start a workout in the Oura app. The app tracks key metrics in real time from their phone, and widgets can help you track pace, distance and more. If you prefer, you can connect third-party heart rate monitors to see your heart rate in real time, too. The app also allows you to use lock screen widgets to track your key metrics during a workout. (While this feature debuts with the Oura Ring 5, it's also rolling out for Oura Ring Gen 3 models and later.)

New Software Enhancements To Help Interpret Your Metrics

In addition to a new design, live fitness tracking and extra battery life, the Oura Ring 5 is getting plenty of smart software upgrades. Oura has partnered with several medical companies to ensure you have plenty of ways to understand your health

insights. Oura says that these upgrades will be available on the Oura Ring Gen 3 and later models.



The new Oura Ring 5 includes improvements to the design, software and metrics.

OURA

Health Radar Proactively Monitors Blood Pressure And Breathing

In partnership with 40 medical professionals, Health Radar continually reviews your ring's metrics and aims to detect and share proactive health behavior in two areas—blood pressure and your sleep habits. Blood Pressure Signals monitors and shares insights on your blood pressure, including during sleep. Additionally, Nighttime Breathing reads a 30-day rolling view of sleep breathing patterns and notes any disturbances to help you learn more about your sleep—and, if necessary, when to see a health professional.

With Counsel Health, See A Medical Professional In Minutes

Additionally, Oura partnered with Counsel Health to debut an online medical service through the Oura app. if a health question arises, it provides AI-enabled personalized

medical advice. You can also virtually connect to a licensed medical professional to help answer your questions and provide medical guidance. At launch, users can expect this service to be available in 43 states. Note that this service costs a nominal fee per visit, but Oura hasn't yet shared the expected cost for a consultation.

You can now also import your health records into the app. Called Oura Health Records, this software feature is designed to support those managing chronic conditions. It combines your data into a singular record that the brand says is easier to understand and act on. Imports can include diagnosed conditions, medications, lab results and more.

GLP-1 Insights Also Come To The Oura Ring

For those monitoring their metabolic health, Oura Ring also debuted GLP-1 Insights, which helps users on these medications understand a multitude of data. It combines dosing, side effect tracking and weight tracking alongside your key metrics, including Sleep, Activity, Readiness and Stress. It can help wearers log dose schedules, the side effects they're feeling and more. And, if you use Lab Uploads, you can also import your lab results to create a more comprehensive view of your metabolic health.

Now, You Can Delete Your Data

Oura is also making it easier to delete your data. Available across all generations of the Oura Ring, you can now delete data stored in the Oura app across a specific time window. The rest of your data is preserved. Keep in mind that you cannot delete a certain subset of data at this time, according to the brand, such as deleting specific metrics like cycle tracking or sleep stats.

How—And Where—To Preorder The Oura Ring 5

Right now, the Oura Ring 5 comes in several finishes, including Gold, Deep Rose, Brushed Silver and Stealth for \$499. The base Silver and Black options cost \$399. It's available at launch in sizes 6 through 13, which is a more limited sizing than the Oura Ring 4 currently offers. You can [preorder it right now](#), for shipping on June 4. The Oura Ring 5 itself as well as the charging case and the required membership (\$5.99/month or \$69.99/year) are all FSA- and HSA- eligible.

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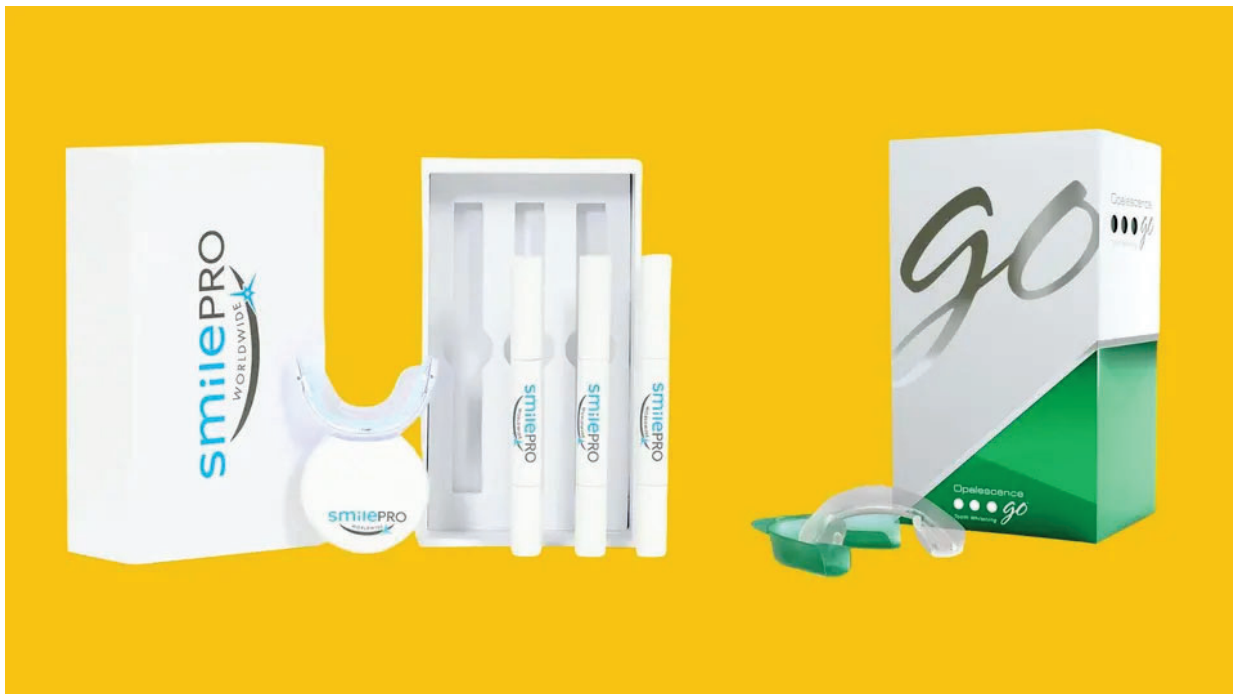
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By **Rebecca Isaacs**. I'm a tech journalist living and working in New York City. As a Midwestern transplant, I worked at the University of Iowa English Department before diving head-first into tech journalism. I have spent over five years learning everything there is to know about...

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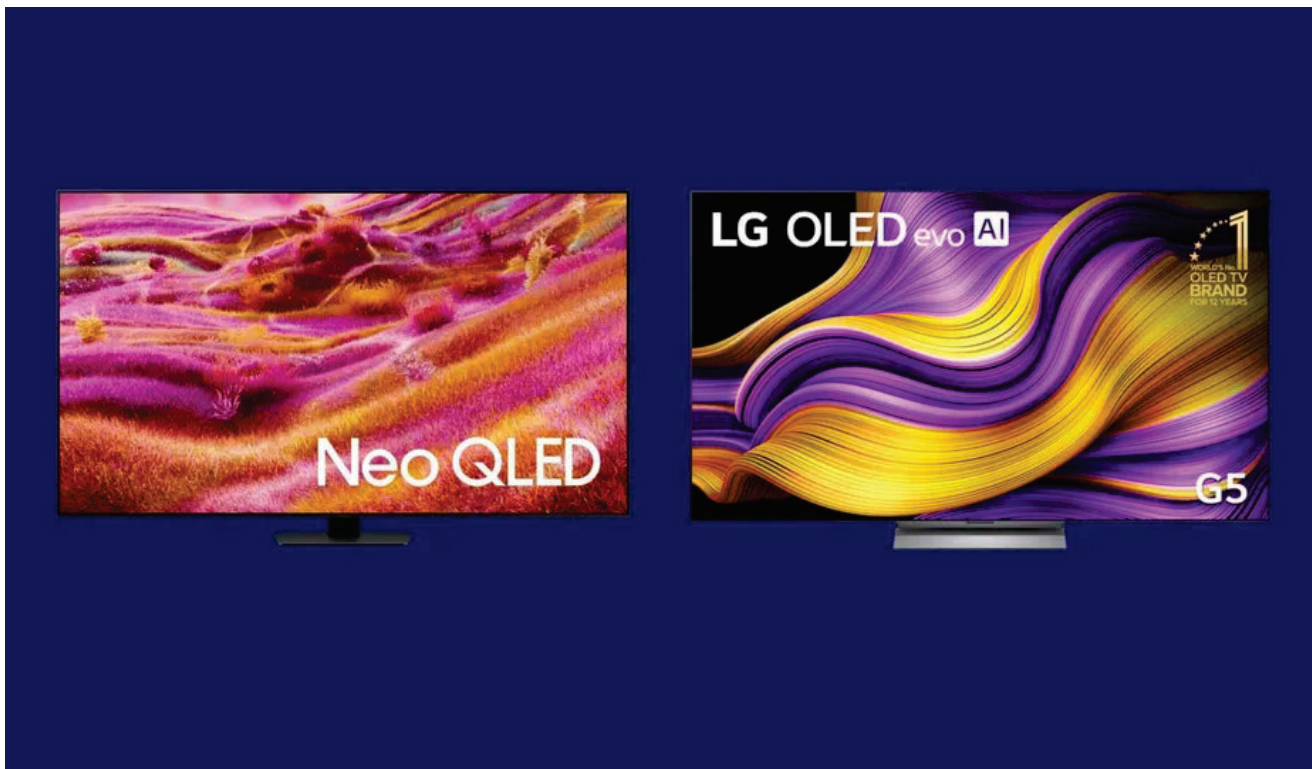
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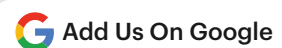
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Published Aug 20, 2026, 04:54pm EDT



Whether you're going on a quick weekend getaway or an international flight, our editors often recommend Away luggage and bags. Several models have earned top spots in our shopping guides, including [The Bigger Carry-On](#) (our pick for the [best carry-on](#)), [The Weekender](#) (our [best weekender bag](#) for short trips) and [The Carry-On Flex](#) (one of our picks for the [best luggage for international travel](#)). While I couldn't find any active Away promo codes this week, you can still save up to \$100 when you bundle select luggage and 20% on items in the [sale section](#). Below, I pulled together the best Away offers and deals worth shopping.

After testing a variety of advertised Away coupons, our editors found none that are currently active. However, there are several great deals live on the brand's site right now—we listed the best ones below.

Best Away Promo Codes And Deals Right Now



Use these verified Away promo codes and offers to prepare for your next getaway.

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Take 10% Off Your First Order

By signing up for Away emails, you can get 10% off your first order. Just scroll all the way down the [homepage](#) and enter your email in the text box at the bottom left corner.

Take Advantage Of Bundle Deals On Away Luggage Sets

With the brand's [Bundle and Save section](#), you can save on multiple pieces of luggage at once. Shoppers can get \$100 off any three suitcases (like the [Jetsetter Bundle](#)) and \$50 off when pairing a suitcase with a bag (like the [Best-Selling Bundle](#)) or an additional suitcase. There are plenty of options to choose from if your travel essentials need a full upgrade.

Opt For The Bigger Carry-On

[The Bigger Carry-On](#) is a great option for most travelers. Our team named it the [best carry-on of 2026](#) thanks to its large capacity, durability and functionality. It has up to seven days' worth of packing space and can be easily stored in standard overhead bins. Our tester used the carry-on on over a dozen trips, from Europe to the Caribbean, and called it "a true utility suitcase" that's "sturdy enough to get tossed around, has a comfortable grip handle and can be stuffed to the absolute brim without the zippers breaking."

How We Find The Best Away Luggage Promo Codes

Each Away luggage coupon and deal in this article has been verified by the Forbes Vetted deals team. Here's how we source the best offers.

As Forbes Vetted's [deals writer](#), I dedicate my workdays to tracking and reporting on the best promo codes and deals across all shopping categories. I

also have experience covering travel deals for retailers like [July](#) and [Expedia](#).

For this article, I browsed Away’s website for discounts on editor-approved and top-rated products. I also reviewed advertised promotions on coupon websites, online forums and third-party publications.

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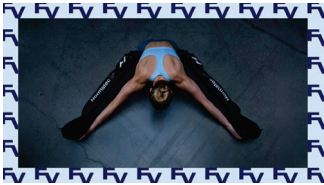
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By **[Bianca Alvarez](#)**. I'm the deals writer for Forbes Vetted, covering the best deals across all shopping categories, including beauty and fashion. Before joining the team, I spent time writing for Allure, Sports Illustrated Swimsuit and NBC Select, where I wrote about all things...

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EXHIBIT B

REDACTED

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of:

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

**RESPONDENTS OURARING INC. AND OURA HEALTH OY'S MOTION FOR
SUMMARY DETERMINATION OF NON-INFRINGEMENT BY OURA'S
ALTERNATIVE PRODUCTS**

GROUND RULE 5.1 CERTIFICATION

Pursuant to Ground Rule 5.1, Oura states that it made reasonable, good-faith efforts to resolve the matter with Samsung prior to filing the Motion. Samsung has indicated that it opposes this motion and agrees that the parties are at an impasse.

Table of Contents

I.	INTRODUCTION	1
II.	BACKGROUND	2
A.	<i>Samsung Complaint</i>	2
B.	<i>Discovery in the Parallel 1468 Investigation and Cross-Use Agreement</i>	3
C.	<i>Discovery and Party Positions in the 1478 Investigation</i>	5
D.	<i>Samsung’s expert offers no opinions regarding [REDACTED] while Oura’s expert provided un rebutted non-infringement opinions on the [REDACTED]</i>	9
III.	LEGAL STANDARD	10
IV.	THE [REDACTED] HAVE MET THE TEST FOR ADJUDICATION	11
A.	<i>The [REDACTED] are Within the Scope of this Investigation</i>	11
B.	<i>The [REDACTED] Have Been Imported</i>	13
C.	<i>The [REDACTED] Are Sufficiently Fixed in Design</i>	14
D.	<i>Sufficient Discovery Has Been Provided.</i>	17
V.	SUMMARY DETERMINATION OF NO INFRINGEMENT OF THE ’789 PATENT BY THE [REDACTED] SHOULD BE GRANTED	26
A.	<i>Samsung Has Put Forth No Evidence of Infringement by [REDACTED]</i>	26
B.	<i>Dr. Mortazavi’s Opinions of Noninfringement by [REDACTED] Stand Un rebutted</i>	27
1.	<i>Dr. Mortazavi’s Opinions of Noninfringement [REDACTED]</i>	27
2.	<i>Dr. Mortazavi’s Opinions of Noninfringement [REDACTED]</i>	31
VI.	CONCLUSION	33

TABLE OF AUTHORITIES

	Page(s)
Cases	
<i>Certain Audio Players and Controllers, Components Thereof, and Products Containing Same</i> , Inv. No. 337-TA-1191, Order No. 19 (Sept. 17, 2020) (EDIS Doc. ID 719871)	16
<i>Certain Crafting Machines and Components Thereof</i> , Inv. No. 337-TA-1426, Init. Det. (Jan. 21, 2026) (EDIS Doc. ID 869643)	1, 10, 26, 27
<i>Certain Electrical Connectors and Cages, Components, And Products Containing the Same Thereof</i> , Inv. No. 337-TA-1241, Init. Det. (March 11, 2022) (EDIS Doc. ID 767918)	13, 16, 21
<i>Certain Human Milk Oligosaccharides and Methods of Producing the Same</i> , Inv. No. 337-TA-1120, Comm’n Op. (June 8, 2020) (EDIS Doc. ID 712205).....	<i>passim</i>
<i>Certain Mobile Devices with Multifunction Emulators</i> , Inv. No. 337-TA-1170, Init. Det. (March 16, 2021) (EDIS Doc. ID 738549)	23
<i>Certain Outdoor and Semi-Outdoor Electronic Displays, Products Containing Same, and Components Thereof</i> , Inv. No. 337-TA-1331, Init. Det. (June 20, 2023) (EDIS Doc. ID 804206).....	10, 17
<i>Certain Photovoltaic Trunk Bus Cable Assemblies and Components Thereof</i> , Inv. No. 337-TA-1438 Init. Det. (Feb. 6, 2026) (EDIS Doc. ID 873421).....	1, 15, 17
<i>Certain Portable Battery Jump Starters and Components Thereof</i> , Inv. No. 337-TA-1359, Init. Det. (July 5, 2024) (EDIS Doc. ID 826438)	14, 16
<i>Certain Smart Wearable Devices, Systems, and Components Thereof</i> , Inv. No. 337-TA-1468	3
<i>Certain Two-Way Radio Equip. and Sys., Related Software, and Components Thereof</i> , Inv. No. 337-TA-1053, Comm’n Op. (Dec. 18, 2018) (EDIS Doc. ID 664543)	10
<i>Certain Video Security Equipment and Systems, Related Software, Components Thereof, and Products Containing Same</i> , Inv. No. 337-TA-1281 Init. Det. (Oct. 24, 2022) (EDIS Doc. ID 784112).....	16
Statutes	
Tariff Act of 1930 Section 337	11, 14



Other Authorities

Rule 1.7	33
Rule 5.6.2.1	33

Table of Exhibits

Ex. No.	Description
1	U.S. Patent No. 10,978,789
2	Oura Complaint, <i>Certain Smart Wearable Devices, Systems, and Components Thereof</i> , ITC Inv. No. 337-TA-1468
3	February 12, 2026 Correspondence between Oura and Samsung counsel
4	Jan. 26, 2026 Oura Production Letter (1468 Investigation)
5	Oura Feb. 9, 2026 First Supplemental Interrogatory Responses (1468 Investigation) (Excerpts)
6	Oura Feb. 9, 2026 Initial Burden DI Contentions: [REDACTED] [REDACTED] – U.S. Patent No. 11,868,178 (1468 Investigation)
7	Oura Feb. 9, 2026 Initial Burden DI Contentions [REDACTED] [REDACTED] – U.S. Patent No. 11,868,178 (1468 Investigation)
8	Feb. 11, 2026 Oura Source Code Production Email (1468 Investigation)
9	Feb. 25, 2026 Oura Production Letter (1468 Investigation)
10	Mar. 17, 2026 Oura Production Letter (1468 Investigation)
11	Mar. 26, 2026 Oura Production Letter (1468 Investigation)
12	Mar. 31, 2026 Oura Production Email (1468 Investigation)
13	M. Christophy Dep. Tr. (1468 Investigation) (Mar. 20, 2026)
14	Samsung Initial Infringement Contentions (1478 Investigation) (Mar. 16, 2026) (Excerpts)
15	Oura Third Suppl. Responses to Samsung's First Set of Interrogatories (1478 Investigation) (Apr. 29, 2026) (excerpts)
16	May 5, 2026 Oura Production Letter (1478 Investigation)
17	May 29, 2026 Oura Production Letter (1478 Investigation)
18	May 29, 2026 Oura Production Email (1478 Investigation)
19	Oura Fifth Suppl. Responses to Samsung's First Set of Interrogatories (1478 Investigation) (May 13, 2026) (Excerpts)
20	Oura Sixth Suppl. Responses to Samsung's First Set of Interrogatories (1478 Investigation) (May 27, 2026) (Excerpts)
21	C.J. Vincent Dep. Tr. (1478 Investigation) (May 21, 2026)
22	2026.05.01 - Oura 30b6 Deposition Designations
23	M. Christophy Dep. Tr. (1478 Investigation) (May 15, 2026) (Excerpt)
24	M. Larson Dep. Tr. (1478 Investigation) (May 19, 2026 (Excerpts)
25	Excerpts, Expert Report of Steven Warren, Ph.D. Concerning Infringement and Domestic Industry Technical Prong Issues related to U.S. Patent No. 10,978,789 (June 10, 2026)
26	Excerpts, Rebuttal Expert Report of Dr. Bobak Jack Mortazavi Regarding Noninfringement of U.S. Patent Nos. 10,642,359, 10,945,677, 10,231,675, and 10,978,789 (June 26, 2026)
27	B. Mortazavi Dep. Tr. (1478 Investigation) (July 8, 2026) (Excerpts)
28	Complainants' First Set of Interrogatories to Respondents (Nos. 1-10) (1478 Investigation) (Jan. 20, 2026)
29	OURA1468 00096106

30	OURA1468 00255396
31	OURA1468 00255092
32	OURA1468 00029590
33	OURA1468 00023857
34	RESERVED
35	Excerpts, Joint Stipulation Regarding Importation and Inventory Between Complainants and Respondents
36	OURA1468 00255396
37	OURA1468 00256348
38	OURA1468 00255163 at -164, -165, -180
39	OURA1468 00255190 at -210
40	S. Warren Dep. Tr. (1478 Investigation) (July 9, 2026) (Excerpts)
41	OURA1468 00219727 – 730
42	OURA1468 00219731
43	OURA1468 00219734 – 735
44	OURA1468 00254628
45	OURA1468 00254646
46	OURA1468 00255339 – 341
47	OURA1468 00255363 – 364
48	OURA1478 00014290
49	OURA1478 00014241
50	OURA1478 00014259
51	OURA1478 00013220
52	RESERVED
53	OURA1468 00219849 – 850
54	OURA1468 00219855 – 863
55	OURA1468 0028605
56	SAMS382-0034753
57	OURA1478 00006316
58	OURA1478 00013242

Respondents Ouraring Inc. and Oura Health Oy (collectively, “Oura”) respectfully move for summary determination of non-infringement of U.S. Patent No. 10,978,789 (the “’789 Patent”) as to Oura Ring Gen. 5 [REDACTED] of which are products-at-issue in this Investigation and neither of which Samsung accuses of infringing any of the Asserted Patents.¹

I. INTRODUCTION

Samsung bears the burden of proof on infringement. Yet, despite Oura identifying that it would seek adjudication of the [REDACTED], and despite Oura providing extensive discovery on [REDACTED] in both this Investigation and the co-pending 337-TA-1468 Investigation for which there is a stipulation for the cross-use of discovery,² Samsung accuses only one ring: Oura Ring Gen. 4. Samsung never accuses [REDACTED].

Nor has Samsung properly offered any expert testimony or even infringement contentions against [REDACTED]. In contrast, Oura’s technical expert has provided unrebutted expert testimony on non-infringement as to [REDACTED]. Samsung’s failure to proffer any allegations or evidence of infringement as to [REDACTED] entitles Oura to summary determination of non-infringement. *See Certain Crafting Machines and Components Thereof*, Inv. No. 337-TA-1426, Init. Det. at 40 (Jan. 21, 2026) (Cheney, Chief ALJ) (EDIS Doc. ID 869643)

¹ In view of Ground Rule 5.6.2.1’s limits to summary determination motions, Oura is moving with respect to the ’789 Patent only. Oura intends to seek adjudication of the Oura Ring Gen. 5 [REDACTED] in this Investigation at a later time with respect to the remaining asserted patents. *See Certain Photovoltaic Trunk Bus Cable Assemblies and Components Thereof*, Inv. No. 337-TA-1438, Init. Det. at 89-113 (Feb. 6, 2026) (adjudicating alternative designs after the evidentiary hearing).

² The Parties agreed to a Joint Discovery Stipulation that permits cross-use of discovery from 1468 Inv. in the present 1478 Investigation. *See* Joint Discovery Stipulation, EDIS No. 878423, at ¶ 29 (“The Parties agree that all discovery taken among the Parties in connection with . . . 337-TA-1468 . . . including produced documents, discovery responses, and 30(b)(6) and 30(b)(1) depositions of Party employees . . . may be used in the present Investigation”).

[REDACTED]

("[Complainant] has not provided any allegations or evidence that the redesigned products, which are ripe for adjudication, infringe the asserted patents. [] Consequently, [Complainant] cannot satisfy its burden of proof on infringement, and [Respondent] is entitled to summary determination of non-infringement.").

II. BACKGROUND

A. *Samsung Complaint*

On December 12, 2025, Samsung filed a complaint seeking 337 Investigation against Oura by alleging that Oura infringes four asserted patents: U.S. Patents Nos. 10,642,359 ("359 patent"), 10,945,677 ("677 patent"), 10,231,675 ("675 patent"), and the '789 patent (collectively, "Asserted Patents"). *See* Original Complaint, EDIS Doc. ID 866474, ¶ 1; Ex. 1 ('789 Patent). Samsung identified the Accused Products as "certain wearable devices, such as smart rings." *Id.* ¶ 3. But the infringement charts accompanying the complaint alleged infringement of only Oura Ring Gen. 4. *Id.*, Exs. 13-16. On December 31, 2025, Samsung filed a first supplement to the Complaint. EDIS No. 867722.

On January 14, 2026, the Commission instituted the Investigation defining the scope of the investigation as "wearable devices, specifically wearable biosignal interfaces and an operation method thereof as well as wearable electronic devices for detecting biometric information." Notice of Institution of Investigation (Jan. 14, 2026) (EDIS Doc. ID 868875).

On January 30, 2026, after setting a 16-month target date (Order No. 4), the ALJ entered a procedural schedule for this Investigation. *See* Order No. 6. Relevant to this motion, the ALJ set two deadlines for responses to contention burden interrogatories: March 16, 2026 for the initial burden contentions and May 7, 2026 for final supplemental of burden contentions. *Id.* On May 5, 2026, at the request of Samsung seeking "to amend the procedural schedule to . . . complete fact

[REDACTED]

and expert discovery,” the ALJ adjusted certain deadlines, including deadline for contention burden interrogatories to May 13, 2026 and close of fact discovery to May 27. Order No. 8.

B. Discovery in the Parallel 1468 Investigation and Cross-Use Agreement

Before the 1478 Investigation was even instituted, Oura and Samsung were in the midst of another investigation that also involved smart ring products. *Certain Smart Wearable Devices, Systems, and Components Thereof*, Inv. No. 337-TA-1468 (November 18, 2025). In the 1468 complaint, Oura identified Oura Ring Generation (“Gen.”) 3, Oura Ring Gen. 4, and [REDACTED] as Oura’s domestic industry products. Ex. 2 (Oura 1468 Complaint), ¶ 5 (“Each of Oura Ring Gen. 3, Gen. 4, [REDACTED] are Oura’s Domestic Industry Products.”) (EDIS Doc. ID 864274). The same counsel represents each party in both Investigations.

Given the significant overlap in the scope of the two investigations, and at the recommendation of the ALJ during the January 29, 2026 preliminary conference for 1478 Investigation, the parties agreed to a discovery cross-use agreement between the 1468 and 1478 Investigations that obviated the need for re-production of the same materials in this Investigation. Ex. 3 (February 12, 2026 Correspondence between Oura and Samsung counsel); *See* Joint Discovery Stipulation, EDIS Doc. ID 878423, at ¶ 29.

The cross-use agreement is significant given the early discovery that Oura provided to Samsung in the 1468 Investigation related to [REDACTED] that therefore did not need to be re-produced in this Investigation. Key dates and productions related to [REDACTED] are the following:

- **January 26, 2026:** Oura produced 99 technical documents comprising photographs of [REDACTED] (OURA1468_00023843 - 847), [REDACTED] hardware tech specs (OURA1468_00023857 - 865), [REDACTED] testing and teardown photographs (OURA1468_00028664 - 760),

and a [REDACTED] design overview (OURA1468_00056564 - 575). *See* Ex. 4 (Jan. 26, 2026 1468 Inv. Production Letter).

- **February 9, 2026:** Oura again identified the [REDACTED] products as domestic industry products in its initial burden domestic industry contentions that Oura would rely on in Investigation No. 337-TA-1468. *See* Ex. 5 at 10. Along with the identification, Oura also served charts that included images of the physical samples, teardowns, and design files for [REDACTED]. *See* Ex. 6 ([REDACTED]) and Ex. 7 ([REDACTED]).
- **February 11, 2026:** Oura made the source code for all its domestic industry products available for inspection by Samsung, including firmware and application code related to [REDACTED]. Ex. 8.
- **February 25, 2026:** Oura produced 28 technical documents comprising [REDACTED] (OURA1468_00218121 - 131), [REDACTED] files (OURA1468_00218132 - 137), and [REDACTED] bill of materials, design schematics, and a PWB stackup specification (OURA1468_00219723 - 738). *See* Ex. 9 (Feb. 25, 2026 1468 Inv. Production Letter).
- **March 17, 2026:** Oura produced 85 technical documents comprising [REDACTED] teardown documents (OURA1468_00254628 - 645), [REDACTED] teardown documents (OURA1468_00254646 - 659), [REDACTED] bill of materials (OURA1468_00254743 - 5091), [REDACTED] feature and design documents (OURA1468_00255092 - 338), [REDACTED] schematic design documents and PCB stackup (OURA1468_00255339 - 375), [REDACTED] photographs (OURA1468_00255376 - 394), a [REDACTED] sensor overview (OURA1468_00255395), and [REDACTED] technical features specifications (OURA1468_00255396 - 447). *See* Ex. 10 (Mar. 17, 2026 1468 Inv. Production Letter).
- **March 26, 2026:** Oura produced a product overview of [REDACTED] with a technical features specification (OURA1468_00256348 - 376). *See* Ex. 11 (Mar. 26, 2026 1468 Inv. Production Letter).
- **March 31, 2026:** Oura made available for inspection physical samples of the [REDACTED] (OURA_PHYS_00000006) and [REDACTED] (OURA_PHYS_00000007), including both new and teardown samples. *See* Ex. 12 (Mar. 31, 2026 1468 Inv. Production Email).

In addition to receiving these technical documents, Samsung also deposed a number of Oura engineers in March 2026, including Miguel Christophy, Vice President of Hardware

Engineering at Oura, whose primary focus is the development and production of [REDACTED]
[REDACTED]:

Q. Have you worked on what's been called [REDACTED] in this case, what I understand to be [REDACTED]?

A. Yes. I've been engaged on [REDACTED] for some months now.

[REDACTED]
[REDACTED]
[REDACTED]

Ex. 13 (Christophy Tr. March 20, 2026) at 28:13-20; *see also id.* at 20:8-11, 26:1-27:16 (establishing Mr. Christophy's role within Oura). During his deposition, Mr. Christophy provided in-depth details on [REDACTED], including [REDACTED], hardware structure, functionality, and engineering schematics of both [REDACTED]. *Id.* 61:10-15 (confirming that [REDACTED]); 64:25-65:3 (confirming that the [REDACTED]); 62:24-64:19 (explaining the hardware and sensors of [REDACTED]); 65:10-72:10 ([REDACTED]); 131:4-146:15 (testifying regarding the CAD and hardware of [REDACTED]); 146:16-150:7 (manufacturing process of [REDACTED] Ring); 150:8-15 (testimony on the PCB structure of [REDACTED]); 154:9-155:15 (discussing the plan of record regarding [REDACTED]); 157:15-178:17 ([REDACTED]
[REDACTED]).

C. Discovery and Party Positions in the 1478 Investigation

On March 16, 2026, despite obtaining substantial discovery about [REDACTED], Samsung served its initial infringement contentions in the 1478 Investigation that accused only Oura Ring Gen. 4 of infringing the Asserted Patents. Ex. 14 at 1 ("Samsung accuses the following wearable devices and corresponding applications of infringement: Oura Ring 4 and its

corresponding software application, including the Oura App”). Samsung made no mention of either [REDACTED]. *Id.*

On April 29, 2026, Oura amended its interrogatory responses to affirmatively identify the [REDACTED] for which it would seek a determination of noninfringement. For example, in response to Samsung’s Interrogatory No. 1 seeking identification of each Accused Product, Oura specifically identified [REDACTED] [REDACTED]. *See* Ex. 15 (April 29 Interrogatory Responses) at 12-13 (Responding to Interrogatory No. 1 to indicate that in addition to Oura Ring Gen. 4, both [REDACTED] should be considered “Accused Products”), 79 (stating the [REDACTED] “do not directly infringe, induce infringement of, or contribute to the infringement of the ’359 Patent, the ’677 Patent, the ’675 Patent, and the ’789 Patent”). The interrogatory response further identified the technical documents previously produced in the 1468 Investigation at OURA1468_00254743 – OURA1468_00255395, OURA1468_00255396 – OURA1468_00255447, and OURA1468_00256348 - OURA1468_00256376 as being particularly relevant. *Id.* at 13. Oura also noted that “source code for the [REDACTED]” for both firmware and Oura Application code continued to be available for inspection on source code laptop since February 11 2026. *Id.* at 12; Ex. 8 (source code production email). Technical documents related to [REDACTED] were also identified in the context of Samsung Interrogatories 2-5. Ex. 15 at 15, 17, 19-21 (further identifying OURA1468_00219723 – 738).

Oura did not rest on its discovery obligations. Despite having produced over 210 technical documents, teardown images, CAD drawings, physical samples, source code, product roadmaps, and deposition testimony related to [REDACTED], Oura continued to flag the [REDACTED] [REDACTED] issue for Samsung by producing additional relevant documents, including:

- **May 5, 2026:** Oura produced [REDACTED] (OURA1478_00004838); 14 datasheets [REDACTED] (OURA1478_00004839 - 5180); 48

██████████ BOMs (OURA1478_00006234 - 281); 7 additional ██████████ component specifications and a PCB stack-up diagram (OURA1478_00006283 - 316). *See* Ex. 16 (May 5, 2026 Production Letter).

- **May 29, 2026:** Oura produced extensive ██████████ (OURA1478_00013076 - 4258) and extensive ██████████ photographs/testing documents, including cross-sectional views of the PCB (OURA1478_00014259 - 793). *See* Ex. 17 (May 29, 2026 Production Letter). Oura also made available for inspection again all the physical samples of the rings, including ██████████ along with the new and tested PCB samples. Ex. 18 (May 29, 2026 Production Email).

Furthermore, in its May 13, 2026 supplemental interrogatory responses, Oura identified OURA1478_00004838 – 5180, OURA1478_00006234 – 281, OURA1478_00006283 – 316 as additional particularly relevant documents for interrogatories 1-5. *See* Ex. 19 at 13, 16, 18, 21, 23. And in its final interrogatory responses on May 27, 2026, Oura noted Samsung’s failure to advance any infringement contentions for “any other Oura product” besides the Oura Gen. 4 ring and stated that “it has produced documents from which Complainants may ascertain relevant information responsive to this Interrogatory, including without limitation those cited in Interrogatory Nos. 1-5.” *See* Ex. 20 at 82-84.

Samsung also deposed a number of Oura employees in the 1478 Investigation. These employees testified about ██████████. For example, Mr. Christopher James Vincent, Senior Director of Sourcing at Oura, testified regarding the production details of ██████████: ██████████:

Q. [] Beyond the Oura Gen 4 Ring, the Gen 4 Ceramic, and the charger, what other products is Oura currently manufacturing?

A. ██████████
██████████
██████████
██████████ ██████████

[REDACTED]

Ex. 21 (Vincent Dep. Tr.) at 21:13-20, 57:6-10. Mr. Vincent further testified that “[REDACTED]

[REDACTED],” [REDACTED]

[REDACTED]

[REDACTED]

Oura also designated three technical corporate witnesses to testify on the Accused Products: (1) Mr. Christophy, VP of Hardware Engineering at Oura, related to hardware of all accused products (2) Mr. Michael Larson, Director of Firmware, to testify on firmware of all accused products, and (3) Mr. Simon Ratner, VP of Software Engineering, to testify regarding software or application of all accused products. Ex. 22 (Oura 2026.05.01 30(b)(6) Dep. Designations). Each of Oura’s technical witness was prepared to testify regarding [REDACTED] [REDACTED]. *See, e.g.*, Ex. 23 (Christophy Dep. Tr.) at 10:16-11:21 (“yeah, I’m prepared to answer regarding Gen. 1, Oura 4, as we call it, [REDACTED]”). In fact, *Samsung’s own counsel* specifically stated that the [REDACTED] were within the scope of the questions being asked during the deposition of Mr. Larson:

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Ex. 24 (Larson Dep. Tr.) at 11:22-12:10; *see also id.* at 26:15-27:5, 44:9-45:6, 61:6-9 (Mr. Larson answering questions regarding the [REDACTED]).

[REDACTED]
[REDACTED]
[REDACTED]. Ex. 21 (Vincent Dep. Tr.) at 63:18-64:6. Fact discovery in this investigation then ended on May 29, 2026. *See* Order No. 8 at 2.

Samsung never complained that Oura failed to meet its discovery obligation regarding [REDACTED]. Nor did Samsung ever suggest that Samsung needed any additional information regarding [REDACTED] that it was not afforded to analyze infringement of either ring.

D. Samsung's expert offers no opinions regarding [REDACTED] while Oura's expert provided un rebutted non-infringement opinions on the two rings.

On June 10, 2026, Samsung's technical expert on infringement of the '789 Patent, Dr. Steven Warren, submitted his opening expert report. Ex. 25 (Warren Inf. Rep.). Dr. Warren again only alleged infringement of Oura Ring Gen. 4. *Id.*, ¶ 3 [REDACTED]
[REDACTED]

[REDACTED] Dr. Warren offered no opinion that the [REDACTED] infringed the '789 Patent. *See generally*, Ex. 25 (Warren Inf. Rep.) at ¶¶ 68-69 (infringement opinions only apply to the Oura Gen. 4 ring).

Despite Dr. Warren not putting forth an infringement opinion, Oura's technical expert on noninfringement of the '789 Patent, Dr. Bobak Jack Mortazavi, relied on the documents produced by Oura to show that [REDACTED] do not meet the asserted claims of the '789 Patent. *See generally*, Ex. 26 (Mortazavi Reb. Rep.) at ¶¶ 651-80. Specifically, Dr. Mortazavi was able to use the produced discovery to show that [REDACTED] does not meet claim limitations [7.C][vi][a], [7.C][vi][c], and [7.C][vi][e] (*see id.* at ¶¶ 655-71) [REDACTED] does not meet claim limitations [7.C][i]-[iv] and [7.C][vi][c] (*see id.* at ¶¶ 672-80). Samsung then deposed Dr. Mortazavi regarding

his noninfringement opinions concerning [REDACTED]. See Ex. 27 (Mortazavi Tr.) at 532:15-569:20.

III. LEGAL STANDARD

“[T]he test for determining whether a respondent has met its burden for adjudication of a redesigned or alternative product includes four factors: (1) whether the product is within the scope of the investigation; (2) whether it has been imported; (3) whether it is sufficiently fixed in design; and (4) whether it has been sufficiently disclosed by respondent during discovery.” *Certain Human Milk Oligosaccharides and Methods of Producing the Same*, Inv. No. 337-TA-1120, Comm’n Op. at 18 (June 8, 2020) (EDIS Doc. ID 712205) (“*Oligosaccharides*”).

While this inquiry is typically undertaken in the context of redesigns, there is no requirement that a product for which adjudication is sought be a redesign—indeed, the test applies to both “a redesigned or alternative product.” *Id.* (emphasis added); see also *Certain Outdoor and Semi-Outdoor Electronic Displays, Products Containing Same, and Components Thereof*, Inv. No. 337-TA-1331, Init. Det. at 4-5 (June 20, 2023) (EDIS Doc. ID 804206) (“In the undersigned’s view, the *Oligosaccharides* framework is not limited to ‘redesigns,’ and Complainant identifies no meaningful difference between a redesigned product and an alternative non-accused product”) (extensively discussing caselaw and Commission policy); *Certain Two-Way Radio Equip. and Sys., Related Software, and Components Thereof*, Inv. No. 337-TA-1053, Comm’n Op. at 23 (Dec. 18, 2018) (EDIS Doc. ID 664543) (“the Commission has encouraged respondents under certain circumstances to put forward products (typically redesigned products) for adjudication even if they are not expressly accused by the complainant”) (emphasis added).

Once a product has been put forth for adjudication, it is the complainant’s burden to prove infringement. *Oligosaccharides*, Inv. No. 337-TA-1120 at 23; see also *Certain Crafting Machines and Components Thereof*, Inv. No. 337-TA-1426, Init. Det. at 40 (without allegations or evidence

that a product infringes a patent, the complainant cannot carry its burden of proof on infringement and summary determination of noninfringement is warranted).

IV. THE [REDACTED] HAVE MET THE TEST FOR ADJUDICATION

Applying the *Oligosaccharides* factors, both of the [REDACTED] are eligible for adjudication in this Investigation. They are indisputably within the scope of this Investigation, they have been imported, they are fixed in design (indeed, [REDACTED] had already been on sale since May), and sufficient discovery about each of these products was provided. A full analysis of each factor follows.

A. *The [REDACTED] are Within the Scope of this Investigation*

There can be no reasonable dispute that the [REDACTED] are within the scope of this Investigation. As set forth by the Notice of Institution, the scope of this investigation encompasses “wearable devices, specifically wearable biosignal interfaces and an operation method thereof as well as wearable electronic devices for detecting biometric information.” Notice of Institution of Investigation (Jan. 14, 2026) (EDIS Doc. ID 868875). As Samsung’s First Amended Complaint has set forth, “[t]he Accused Products include, but are not limited to, Respondents’ Oura Ring products.” Samsung Amended Complaint Under Section 337 of the Tariff Act of 1930, at ¶ 17. Furthermore, Samsung’s First Set of Interrogatories to Oura made clear that the “‘Accused ’789 Products’ means all of Respondents’ products that Samsung contends are covered by at least one Asserted Claim of the ’789 Patent... including yet to be released products with similar health tracking functionality as the ’789 accused features or functions.” Ex. 28 (Excerpts, Samsung First Set of Interrogatories) at Definitions, ¶ 13.

Like the Oura Gen. 4 ring that is the subject of Dr. Warren’s infringement opinions (*see* Ex. 25 at ¶¶ 68-69), the [REDACTED] are wearable electronic devices for detecting

biometric information: indeed, [REDACTED] is the Oura Gen. 5 ring that went on sale May 28, 2026, and [REDACTED]:

Oura Gen. 4 ring	[REDACTED]	[REDACTED]
 OURA1468_00096106 (Ex. 29)	 OURA1468_00255396 (Ex. 30)	 OURA1468_00255092 at - 092 (Ex. 31)
Biometric Sensors: • Temperature • Red, Green, and Infrared LEDs with photodetectors • Accelerometer OURA1468_00029590 at 607-610 (Ex. 32)	Biometric Sensors: • Temperature • Red, Green, and Infrared LEDs with photodetectors • Accelerometer OURA1468_00023857 at - 858 (Ex. 33)	[REDACTED] • [REDACTED] [REDACTED] [REDACTED] OURA1468_00255092 at - 137 (Ex. 31)

[REDACTED]

Ex. 31, OURA1468_00255092 at -097.

Finally, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Ex. 35 at 1, Exhibit A.

Accordingly, there can be no genuine dispute that the [REDACTED] are squarely within the scope of this Investigation.

B. The [REDACTED] Have Been Imported

While importation is not necessary for adjudication, importation is relevant to this inquiry (*see Oligosaccharides*, Inv. No. 337-TA-1120 at 18, n.21), and both the [REDACTED] have been imported. Oura made available to Samsung physical samples of the [REDACTED] in the United States on March 31, 2026, and these samples had previously been imported. *See* Ex. 18 (May 29, 2026 Production Email); Ex. 21 (Vincent Dep. Tr.) at 22:3-6 (“Oura is not currently manufacturing any products in the United States”); *see also Certain Electrical Connectors and Cages, Components, And Products Containing the Same Thereof*, Inv. No. 337-TA-1241, Init. Det. at 34-35 (March 11, 2022) (EDIS Doc. ID 767918) (noting that “[t]he

Commission has held that ‘importation’ in the context of section 337 means ‘importation by a respondent without regard to purpose,’” and the fact that “physical samples of certain Redesign Products were produced in the United States by Luxshare in discovery” supported a finding of importation); *Certain Portable Battery Jump Starters and Components Thereof (II)*, Inv. No. 337-TA-1359, Init. Det. at 27-28 (July 5, 2024) (EDIS Doc. ID 826438) (“Evidence that physical samples were imported for use as exhibits [in an ITC investigation]—as the redesigned products were here—has been found to be sufficient evidence of importation.”).

Indeed,

See Ex. 35 (Importation Stipulation) at Exhibit A; *see also id.* at ¶ 3 (“

”).

C. The [REDACTED] Are Sufficiently Fixed in Design

Both [REDACTED] are fixed in design. [REDACTED] went on sale in the United States on May 28, 2026 with shipments to consumers starting less than a week later by June 4, 2026. Ex. 21 (Vincent Dep. Tr.) at 63:18-64:6. [REDACTED]

[REDACTED]

[REDACTED] Ex. 21 (Vincent Dep. Tr.) at 21:13-20, 57:6-10, 63:18-64:6. Even before that, its relevant features were substantially fixed [REDACTED],

[REDACTED]

[REDACTED] See Ex. 36 (OURA1468_00255396). Given that the product is currently on the market, the [REDACTED] Ring is unquestionably fixed in design.

[REDACTED] is also fixed in design for purposes of this inquiry. The relevant question is not whether the products-at-issue are final in every possible respect, but rather, whether the products “are sufficiently fixed for adjudication.” *See Certain Photovoltaic Trunk Bus Cable Assemblies and Components Thereof*, Inv. No. 337-TA-1438, Init. Det. at 105-06 (Feb. 6, 2026) (EDIS Doc. ID 873421) (“Even if the 1438 ADs have not been certified and are not ready to sell today, the evidence supports that their structure is fixed, particularly with respect to the claimed features, so that the parties’ technical experts could (and did) understand and opine on them.”). As the experts of both parties agree, the ’789 Patent concerns a “rigid-flex PCB” design. *See* Ex. 25 (Warren Inf. Rep.) at ¶¶ 40-41, 47; Ex. 26 (Mortazavi Reb. Rep.) at ¶¶ 50-51. Thus, the inquiry focuses most particularly on the fixedness of the printed circuit board (“PCB”) design, which in the case of [REDACTED], is entirely fixed.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] *See generally*, Background Section, *supra*.

Indeed, further evidencing the fixed nature [REDACTED]
[REDACTED]

[REDACTED]; *Certain Audio Players and Controllers, Components Thereof, and Products Containing Same*, Inv. No. 337-TA-1191, Order No. 19 at 4 (Sept. 17, 2020) (EDIS Doc. ID 719871) (providing “physical devices” shows fixedness of design).
[REDACTED]

[REDACTED] *See Certain Electrical Connectors and Cages*, Inv. No. 337-TA-1241, Init. Det. at 35-36 (noting that products can be sufficiently fixed in design even without completing “testing necessary to be released to the market”); *Certain Video Security Equipment and Systems, Related Software, Components Thereof, and Products Containing Same*, Inv. No. 337-TA-1281, Init. Det. at 22 (Oct. 24, 2022) (EDIS Doc. ID 784112) (indicating that the fact “a change could be made in the future . . . is not sufficient for a finding that a redesign cannot be adjudicated”); *Certain Portable Battery Jump Starters*, Inv. No. 337-TA-1359, Init. Det. at 34, 41 (“The Commission, however, ‘does not require that a redesign involve a commercial product in order to be adjudicated.’ [] Nor is a commercially viable or ‘workable’ product required... the fact that a redesign has not been completely ‘finalized’ or that it requires further testing prior to commercial production is not required under Commission precedent for a design to be considered sufficiently fixed.”) (citations omitted).

Thus, given that [REDACTED] is on sale with a completely final design, and [REDACTED]
[REDACTED]

D. Sufficient Discovery Has Been Provided.

The fourth and final factor of this inquiry (regarding the sufficiency of discovery) does not present a high bar: “the key question is whether Respondents provided ‘sufficient (not extensive) fact and expert discovery to put [complainant] on notice of that [product] and its relevant features.’” *Certain Outdoor and Semi-Outdoor Electronic Displays*, Inv. No. 337-TA-1331, Init. Det. at 10 (citing *Oligosaccharides*, Inv. No. 337-TA-1120, Comm’n Op. at 20).

As recited in greater detail in the “Background” section, *supra*, Oura began producing technical documents for [REDACTED] on January 26, 2026, only 10 days after this Investigation was instituted. See Ex. 4 (Jan. 26, 2026 Investigation Production Letter). Oura began producing technical documents for [REDACTED] a month later on February 25, 2026, after having identified [REDACTED] as domestic industry products that would be relied upon by Oura in Investigation No. 337-TA-1468. Ex. 5 (1468 Inv. Initial Burden DI Contentions) at 10; Ex. 9 (Feb. 25, 2026 1468 Investigation Production Letter). On March 20, 2026, Samsung deposed Oura’s VP of Hardware Engineering extensively on technical details of both [REDACTED], including the relevant PCB structure:

Service	Used (%)	Not used (%)	Don't know (%)
Online banking	85	15	0
Mobile banking	75	25	0
Online bill payment	65	35	0
Online account opening	55	45	0
Online loan application	45	55	0
Online investment services	35	65	0
Online insurance services	25	75	0
Online credit card application	15	85	0
Online money transfer	10	90	0
Online financial planning	5	95	0
Online wealth management	2	98	0
Online estate planning	1	99	0
Online tax services	0	100	0

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Ex. 23 (Christophy Dep. Tr. (1478 Inv.)) at 150:8-15, 168:24-169:13; *see also id.* at 61:10-15 (confirming that [REDACTED]); 64:25-65:3 (confirming that [REDACTED]); 62:24-64:19 (explaining the hardware and sensors [REDACTED]); 65:10-72:10 (discussion of [REDACTED] hardware and design); 131:4-146:15 (testifying regarding the CAD and hardware [REDACTED]); 146:16-150:7 (manufacturing process of [REDACTED] Ring); 150:8-15 (testimony on the PCB structure of [REDACTED]); 154:9-155:15 (discussing the plan of record regarding [REDACTED]); 157:15-178:17 (testifying on physical design of [REDACTED], including hardware components).

On April 29, 2026, Oura's interrogatory responses identified the [REDACTED] as products for which Oura would seek a determination of noninfringement in this Investigation. *See* Ex. 15 (April 29 Interrogatory Responses) at 12-13, 79. Oura then continued to supplement its interrogatory responses to identify further relevant documents relating to [REDACTED], and noted Samsung's clear failure of proof with regard to any product besides the Oura Gen. 4 ring. *See* Ex. 19 (May 13, 2026 Supplemental Interrogatory Responses) at 13, 16, 18, 21, 23; Ex. 20 (May 27, 2026 Supplemental Interrogatory Responses) at 82-84. On May 15 and 19, 2026, Samsung deposed two Oura corporate witnesses designated on technical details of Accused Products, including [REDACTED]. Ex. 23 (Christophy Dep. Tr.) (May 15, 2026); Ex. 24 (Larson Dep. Tr.) (May 19, 2026). On May 21, 2026, Samsung deposed the senior director of sourcing, Mr. Vincent, who testified extensively about the development process of [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]. Ex. 21 (Vincent Dep. Tr.). In fact, Oura has complied with every discovery request from Samsung regarding the [REDACTED]. Not once did Samsung ever suggest that Oura's production, whether related to technical documents, native CAD files, product images, teardown images, physical samples, components, build of materials, or deposition witnesses was lacking in any capacity.³

The discovery provided by Oura (well over two hundred technical documents spanning several thousand pages, *see generally*, Background Section (detailing [REDACTED] discovery and Bates ranges) was more than sufficient for Samsung to be on notice of the relevant features of these products. In addition to the [REDACTED] CAD files produced on February 25, 2026 (OURA1468_00218121 - 137), Oura produced on the same date the [REDACTED] PCB schematic:

[REDACTED]

Ex. 41 (OURA1468_00219727 – 730); *see also* Ex. 42 (OURA1468_00219731) (similar schematics noting each “flex area” and “rigid area”). Oura also produced the PCB stackup diagram for [REDACTED] in the same production:

³ After Oura's rebuttal expert report was served, Oura also complied with two requests for native copies of certain earlier-produced documents cited by Dr. Mortazavi. The as-produced versions of these documents were neither insufficient for assessing the relevant features, nor was their existence essential in the first place, given the other document produced.

[REDACTED]

[REDACTED]

Ex. 43 (OURA1468_00219734 – 735).

On March 17, 2026, Oura produced teardown photos of both [REDACTED]:

[REDACTED]

Ex. 44 (OURA1468_00254628) ([REDACTED]); Ex. 45 (OURA1468_00254646) ([REDACTED]).

Within this production, Oura also produced the [REDACTED] PCB schematic and PCB stackup diagram:

[REDACTED]

[REDACTED]

Ex. 46 (OURA1468_00255339 – 341).

[REDACTED]

Ex. 47 (OURA1468_00255363 – 364).

Furthermore, on March 31, 2026, Oura made available for inspection physical samples of [REDACTED] (OURA_PHYS_0000006) [REDACTED] (OURA_PHYS_0000007) (Ex. 12 (1468 Inv. Production Email))—the products themselves were certainly sufficient to put Samsung on notice of these products and their properties. *See Certain Electrical Connectors and Cages*, Inv. No. 337-TA-1241, Init. Det. at 36–38 (“Luxshare’s production of samples and documentation for the Redesign Products should have been sufficient to facilitate an infringement analysis with respect to the ‘electrically lossy material’ limitation, although Amphenol did not perform this analysis”).

[REDACTED]

And on May 29, 2026, Oura produced extensive [REDACTED] testing photographs/documents, including cross-sectional views of their respective PCBs:

[REDACTED]

Ex. 48 (OURA1478_00014290) ([REDACTED])

[REDACTED]

Ex. 49 (OURA1478_00014241) ([REDACTED])

[REDACTED]

Ex. 50 (OURA1478_00014259) ([REDACTED])

[REDACTED]

Ex. 51 (OURA1478_00013220) ([REDACTED]). Dr. Mortazavi was then able to opine on noninfringement (Ex. 26 (Mortazavi Reb. Rep.) at ¶¶ 652-80) and answer deposition questions (Ex. 27 (Mortazavi Dep. Tr.) at 532:15-569:20) regarding [REDACTED].

Even Samsung's expert on the '789 Patent, Dr. Warren, provided testimony on redirect examination from Samsung's counsel that demonstrated that he understood the structure of [REDACTED]:

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Ex. 40 (Warren Dep. Tr.) at 206:22-207:4; *see also id.* at 35:14-15, 41:5-10, 135:7-9, 200:10-215:2 (further testimony concerning [REDACTED]). This surprise testimony on redirect examination was inappropriate and should be struck—as will be set forth in a separate motion to strike—but nonetheless demonstrates that sufficient discovery had been provided.

The quantity and timing of discovery more than exceeds Commission precedent for providing sufficient discovery. *See Oligosaccharides*, Inv. No. 337-TA-1120, Comm’n Op. at 23, n. 25 (finding that respondent produced sufficient discovery when respondent produced some documentation and noting complainant “chose not to question witnesses or to test” the redesign); *Certain Mobile Devices with Multifunction Emulators*, Inv. No. 337-TA-1170, Init. Det. at 9-10 (March 16, 2021) (EDIS Doc. ID 738549) (“As an example of the flexibility on this issue, the Commission held in *Oligosaccharides* that two documents produced without explanation from the producing party during fact discovery (and one, a patent application containing no reference to the redesigned product name) qualified as ‘sufficient’ discovery under factor (4).”).

Indeed, the discovery produced was of the same type as relied upon by Samsung’s expert with regard to alleged infringement of the ’789 Patent by the Oura Gen. 4 ring. A brief comparison

of the principal evidence relied upon by Dr. Warren when opining on alleged infringement of the Oura Gen. 4 ring to the evidence produced by Oura for [REDACTED] follows:

PCB Schematics		
Oura Gen. 4 ring	[REDACTED]	[REDACTED]
 OURA1468_00219849 – 850 (Ex. 53) (relied upon at Ex. 25 (Warren Inf. Rep.) at ¶¶ 71, 104, 111, 122, 124, 128, 132)	 OURA1468_00219727 – 730 (Ex. 41)	 OURA1468_00255363 – 364 (Ex. 47)
PCB Stackup Diagram		
Oura Gen. 4 ring	[REDACTED]	[REDACTED]
 OURA1468_00219855 – 863 (Ex. 54) (relied upon at Ex. 25 (Warren Inf. Rep.) at ¶¶ 74, 107, 112, 113, 115, 137-38, and generally <i>passim</i>)	 OURA1468_00219734 – 735 (Ex. 43)	 OURA1468_00255339 – 341 (Ex. 46)

Cross-Section Teardowns		
Oura Gen. 4 ring		
	 OURA1468_00254646 (Ex. 45)	 OURA1468_00254628 (Ex. 44)
OURA1468_0028605 (Ex. 55) (relied upon at Ex. 25 (Warren Inf. Rep.) at ¶ 105)		
Scanning Electron Microscope Images		
Oura Gen. 4 ring		
	 OURA1478_00014290 (Ex. 48)	 OURA1478_00014241 (Ex. 49)
SAMS382-0034753 (Ex. 56) (relied upon at Ex. 25 (Warren Rep.) at ¶ 117, 119, 129, and generally <i>passim</i>)		

See generally, Ex. 25 (Warren Rep.) at ¶¶ 70-312 (providing infringement opinions). Indeed, Oura proactively provided extensive scanning electron microscope images of the PCBs of   (produced at OURA1478_00013076 - 4793), whereas it was Samsung's expert who obtained teardown photos for the Oura Gen. 4 ring. Oura did not withhold discovery, and should Samsung have believed that there were deficiencies, it could have raised any such concerns. See *Oligosaccharides*, Inv. No. 337-TA-1120, Comm'n Op. at 23 ("If Glycosyn and its expert deemed such evidence to be insufficient, Glycosyn could and should have taken available procedural steps,

such as a motion to reopen discovery or compel further discovery, because the burden of establishing infringement remains with Glycosyn.”).

Accordingly, the test for providing sufficient discovery has been met, and this factor also favors adjudication of the [REDACTED] products.

* * *

In sum, Oura more than meets its burden to show that the [REDACTED] are eligible for adjudication in this Investigation. Both the [REDACTED] are within the scope of this Investigation, have been imported, are sufficiently fixed in design, and discovery about the products has been provided by Oura throughout the Investigation.

V. SUMMARY DETERMINATION OF NO INFRINGEMENT OF THE '789 PATENT BY THE [REDACTED] SHOULD BE GRANTED

Given that Oura has met its burden to show that the [REDACTED] are eligible for adjudication, the burden flips to Samsung to prove infringement. *See Oligosaccharides*, Inv. No. 337-TA-1120 at 23. Samsung cannot carry its burden, and accordingly summary determination that the [REDACTED] do not infringe asserted claims 7-10 of the '789 Patent is warranted.

A. *Samsung Has Put Forth No Evidence of Infringement by [REDACTED]*

Despite Samsung bearing the proof to prove infringement, Samsung has failed to proffer any expert opinion on infringement regarding [REDACTED]—indeed, it has not even offered infringement contentions regarding [REDACTED].⁴ This fact alone is reason to grant summary judgment of noninfringement. *See Certain Crafting Machines and Components Thereof*, Inv. No. 337-TA-1426, Init. Det. at 40 (“Cricut has not provided any allegations or evidence that the redesigned products, which are ripe for adjudication, infringe the asserted patents. []

⁴ On the final day of expert discovery, Samsung attempted to have Dr. Warren put forth an infringement opinion through redirect deposition testimony. This was inappropriate, and is subject to a concurrently-filed motion to strike.

Consequently, Cricut cannot satisfy its burden of proof on infringement, and HTVRONT is entitled to summary determination of non-infringement.”); *see also Oligosaccharides*, Inv. No. 337-TA-1120, Comm’n Op. at 24 (finding no infringement after noting that “Glycosyn presented no expert evidence to establish the presence of a lacZ gene or lacZΩ fragment in the TTFL12 strain, and thereby infringement by that strain”) (citing *Centricut, LLC v. Esab Group, Inc.*, 390 F.3d 1361, 1370 (Fed. Cir. 2004) for its finding of no infringement where the patent owner did not support its contentions with an expert opinion).

B. Dr. Mortazavi’s Opinions of Noninfringement by [REDACTED] Stand Unrebutted

Additionally, as a separate basis to find noninfringement, Dr. Mortazavi has advanced unrebutted evidence and expert opinions that the [REDACTED] do not meet the asserted claims of the ’789 Patent. *See generally*, Ex. 26 (Mortazavi Reb. Rep.) at ¶¶ 651-80; *see also Certain Crafting Machines and Components Thereof*, Inv. No. 337-TA-1426, Init. Det. at 40 (noting that “undisputed evidence that the redesigned products do not infringe the asserted patents [] also justifies summary determination,” thereby recognizing that unrebutted evidence of noninfringement is merely an additional basis for noninfringement and is not a necessity).

1. Dr. Mortazavi’s Opinions of Noninfringement by [REDACTED]

Dr. Mortazavi was able to use the produced discovery to show that [REDACTED] does not meet claim limitations [7.C][vi][a], [7.C][vi][c], and [7.C][vi][e]. *See* Ex. 26 (Mortazavi Reb. Rep.) at ¶¶ 655-71.

For claim limitation [7.C][vi][a], which requires a “second material different from the first material,” wherein the first material insulates the rigid PCB portions as a first exterior surface and the second material insulates the flexible PCB portions as a first exterior surface, Dr. Mortazavi showed that the respective first exterior surfaces of the rigid and flexible PCB portions is “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]’ *Id.* at ¶¶ 656-59. Dr. Mortazavi annotated a [REDACTED] PCB stackup diagram to show this:



Id. at ¶ 658 (annotating a color version of OURA1478_00006316 to show [REDACTED]
[REDACTED]).⁵

This can also be seen in, for example, the [REDACTED] PCB teardown photos, which show [REDACTED]
[REDACTED]:

⁵ OURA1478_00006316 (Ex. 57) is substantively the same as OURA1468_00219734 (Ex. 43), produced February 25, 2026 and identified in Oura’s April 29, 2026 Interrogatory Responses regarding “components of the printed circuit board (PCB).” *See* Ex. 15 at 15-17. OURA1478_00006316 was also identified as relevant to this interrogatory (Rog. 3) on May 13, 2026. Ex. 19 at 18.

[REDACTED]

Ex. 50 (OURA1478_00014259) (zoomed in). This alone is sufficient for noninfringement by

[REDACTED].

For claim limitation [7.C][vi][c], which requires that the second insulating layer for the flexible PCB portions have a “second thickness thinner than the first thickness” of the second insulating layer for the rigid PCB portions, Dr. Mortazavi showed that [REDACTED]. See Ex. 26 (Mortazavi Reb. Rep.) at ¶¶ 662-64. Dr. Mortazavi again showed this with an annotated version of the [REDACTED] PCB stackup diagram:



[REDACTED]

Id. at ¶ 663 (annotating a color version of OURA1478_00006316 to show [REDACTED]
[REDACTED]); Ex. 50 (OURA1478_00014259) (zoomed in image shown, *supra*) (showing [REDACTED]
[REDACTED]). This too is sufficient for noninfringement.

For claim limitation [7.C][vi][e], which requires a “second material” in the third insulating layer of the flexible PCB portions that is different from the “first material” in the third insulating layer of the rigid PCB portions, Dr. Mortazavi showed that [REDACTED]
[REDACTED] Ex. 26 (Mortazavi Reb. Rep.) at ¶¶ 667-70. Dr. Mortazavi again showed this with an annotated version of the [REDACTED] PCB stackup diagram:



[REDACTED]

Id. at ¶ 669 (annotating a color version of OURA1478_00006316). This is a third reason for noninfringement by the [REDACTED] ring.

2. *Dr. Mortazavi's Opinions of Noninfringement by [REDACTED]*

Dr. Mortazavi was able to use the produced discovery to show that [REDACTED] does not meet claim limitations [7.C][i]-[iv] and [7.C][vi][c]. *See* Ex. 26 (Mortazavi Reb. Rep.) at ¶¶ 672-80.

For claim limitations [7.C][i]-[iv], which collectively require “a combination of connected and alternating rigid and flexible PCB portions that form a rigid-flexible-rigid-flexible structure,” Dr. Mortazavi showed [REDACTED]. *Id.* at ¶¶ 673-74. Dr. Mortazavi annotated a [REDACTED] PCB stackup diagram to show this:

[REDACTED]

Id. at ¶ 673 (annotating OURA1468_00255354).⁶ This alone is sufficient for noninfringement by [REDACTED].

For claim limitation [7.C][vi][c], which requires that the second insulating layer for the flexible PCB portions have a “second thickness thinner than the first thickness” of the second insulating layer for the rigid PCB portions, Dr. Mortazavi showed [REDACTED].

⁶ OURA1468_00255354 was specifically identified in Oura's April 29, 2026 interrogatory responses, including in response to Samsung's interrogatory about PCB structure. *See* Ex. 15 (April 29 Interrogatory Responses) at 13, 17.

See Ex. 26 (Mortazavi Reb. Rep.) at ¶¶ 677-79. Dr. Mortazavi showed this with an annotated version of the [REDACTED] PCB stackup diagram:



Id. at ¶ 678 (annotating OURA1468_00255354). The [REDACTED]

[REDACTED]



Ex. 58 (OURA1478_00013242). This too is sufficient for noninfringement by [REDACTED].

* * *

Thus, not only does Samsung offer no evidence with which to meet its burden of proof, the evidence actually shows that the [REDACTED] do not meet the limitations of any asserted claim of the '789 Patent. The unrebutted opinion by Dr. Mortazavi combined with the

[REDACTED]

evidence that he relies upon accordingly provides a second basis for granting summary determination that the [REDACTED] do not infringe asserted claims 7-10 of the '789 Patent.

VI. CONCLUSION

Samsung cannot simply refuse to have certain products adjudicated within an Investigation. As has been noted in nearly every one of the decisions cited above, the Commission has a well-reasoned “policy in favor of adjudicating redesigns to prevent subsequent and potentially burdensome proceedings that could have been resolved in the first instance in the original Commission investigation.” *See Oligosaccharides*, Inv. No. 337-TA-1120, Comm’n Op. at 18. Here, Oura’s next generation [REDACTED] were disclosed to Samsung during discovery and Oura stated in its contention in April that these products did not infringe the asserted patents; in response, Samsung took minor discovery regarding these products but otherwise put forth no allegations of infringement. There can thus be no genuine dispute that Samsung cannot carry its burden to prove infringement, and summary determination that the [REDACTED] do not infringe asserted claims 7-10 of the '789 Patent is therefore warranted.

Ground Rule 1.7 Certification

Pursuant to Ground Rule 1.7, the undersigned certifies that this response complies with the word limit requirements of Ground Rule 5.6.2.1 (under 10,000 words). Specifically, the word count of the word-processing system used to prepare this filing is 7,697 words.

Dated: July 13, 2026

Respectfully submitted,

/s/ Jasjit S. Vidwan

Jasjit S. Vidwan

James A. Fussell, III

Saqib J. Siddiqui

Bryan C. Nese

Michael L. Lindinger

Tiffany A. Miller

Clark S. Bakewell

Alison T. Gelsleichter

Tariq Javed

Amanda E. Stephenson

Seth W. Bruneel

Courtney Krawice

Séké Godo

Angeline Premraj

Paul Choi

So Ra Ko

Jaspreet Momi

Jennifer Weinberg

MAYER BROWN LLP

1999 K Street, NW

Washington, DC 20006-1101

Tel.: +1 202.263.3000

Robert G. Pluta

Nicholas H. Ciulla

MAYER BROWN LLP

71 S. Wacker Drive

Chicago, IL 60606

Tel.: +1 312.782.0600

*Counsel for Respondents Ouraring Inc. and
Oura Health Oy*

Oura-ITC@mayerbrown.com

EXHIBIT C

REDACTED

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of:

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

**RESPONDENTS OURARING INC. AND OURA HEALTH OY'S OPPOSITION
TO COMPLAINANTS' MOTION FOR SUMMARY DETERMINATION
REGARDING INFRINGEMENT & DOMESTIC INDUSTRY TECHNICAL
PRONG FOR U.S. PATENT NOS 10,945,677 AND 10,231,675
(Motion No. 1478-009)**

TABLE OF CONTENTS

	Page
I. INTRODUCTION	1
II. LEGAL STANDARD.....	2
III. SAMSUNG CANNOT CARRY ITS BURDEN OF PROOF TO OBTAIN SUMMARY DETERMINATION CONCERNING THE OURA GEN. 4 RING	4
A. [REDACTED] does not “refrain from the emitting of the light” or “inactivate” any sensor (limitations [1.g] of the ’677 Patent and [13.f] and [20.j] of the ’675 Patent)	6
B. There are irreconcilable contradictions in Dr. Welch’s opinions regarding limitations [1.g], [9.f], and [16.e] of the ’677 Patent	8
C. There are irreconcilable contradictions in Dr. Welch’s opinions regarding limitations [13.c] and [20.g] of the ’675 Patent	11
D. Irreconcilable contradictions are a foundational defect preventing Samsung from carrying its burden of proof on infringement	13
E. Opposing summary determination on the basis of irreconcilable contradictions does not amount to a “practicing the prior art” defense	14
IV. ADDITIONAL FAILURES OF PROOF PREVENT SUMMARY DETERMINATION REGARDING [REDACTED] ALTERNATIVE PRODUCTS	16
V. INDEPENDENT CLAIM 13 OF THE ’675 PATENT IS A METHOD CLAIM THAT CANNOT BE DIRECTLY INFRINGED BY THE ACCUSED PRODUCTS.....	20
VI. CONCLUSION.....	21

TABLE OF AUTHORITIES

Page(s)

Cases

<i>01 Communique Lab., Inc. v. Citrix Sys.</i> , 889 F.3d 735 (Fed. Cir. 2018).....	14, 15
<i>Amazon.com, Inc. v. Barnesandnoble.com, Inc.</i> , 239 F.3d 1343 (Fed. Cir. 2001).....	16
<i>Bristol-Myers Squibb Co. v. Ben Venue Lab’ys, Inc.</i> , 246 F.3d 1368 (Fed. Cir. 2001).....	14
<i>Brown v. County of Nassau</i> , 736 F. Supp. 2d 602 (E.D.N.Y. 2010)	4
<i>Centricut, LLC v. Esab Group, Inc.</i> , 390 F.3d 1361 (Fed. Cir. 2004).....	21
<i>Certain Carburetors and Products Containing Such Carburetors</i> , Inv. No. 337-TA-1123, Comm’n Op. (Oct. 28, 2019).....	3
<i>Certain Crafting Machines and Components Thereof</i> , Inv. No. 337-TA-1426	18
<i>Certain Human Milk Oligosaccharides and Methods of Producing the Same</i> , Inv. No. 337-TA-1120, Comm’n Op. (June 8, 2020) (EDIS Doc. ID 712205)	2, 18
<i>Ericsson, Inc. v. D-Link Sys.</i> , 773 F.3d 1201 (Fed. Cir. 2014).....	20
<i>Evans Cooling Sys., Inc. v. Gen. Motors Corp.</i> , 125 F.3d 1448 (Fed. Cir. 1997).....	15
<i>Sartor v. Arkansas Natural Gas Corp.</i> , 321 U.S. 620 (1944).....	3, 14
<i>Spansion, Inc. v. Int’l Trade Comm’n</i> , 629 F.3d 1331 (Fed. Cir. 2010).....	2
<i>Suprema, Inc. v. Int’l Trade Comm’n</i> , 796 F.3d 1338 (Fed. Cir. 2015).....	20
<i>Estate of Thomas v. Fayette Cnty.</i> , 194 F. Supp. 3d 358 (W.D. Pa. 2024).....	4, 16
<i>Typeright Keyboard Corp. v. Microsoft Corp.</i> , 374 F.3d 1151 (Fed. Cir. 2004).....	4, 13



<i>Vanmoor v. Wal-Mart Stores, Inc.</i> , 201 F.3d 1363 (Fed. Cir. 2000).....	15
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Other Authorities

U.S. Patent Nos. 10,231,675	<i>passim</i>
U.S. Patent Nos. 10,945,677	<i>passim</i>

**Table of Exhibits**

Ex. No.	Description
A	U.S. Patent No. 10,945,677
B	U.S. Patent No. 10,231,675
C	Illustration of relevant state status diagram of Oura Gen. 1 and Gen. 4 rings
D	Excerpted copy of the Opening Expert Report of Dr. Jack Bobak Mortazavi Regarding Invalidity of U.S. Patent Nos. 10,642,359, 10,945,677, 10,231,675, and 10,978,789
E	Oura Gen. 1 ring technical specification (OURA1478_00001491)



I. INTRODUCTION

Respondents Ouraring Inc. and Oura Health Oy (collectively, “Oura”) respectfully oppose, in part,¹ Complainants Samsung Electronics Co., Ltd. and Samsung Electronics America, Inc.’s (collectively, “Samsung”) Motion for Summary Determination Regarding Infringement & Domestic Industry Technical Prong for U.S. Patent Nos. 10,945,677 and 10,231,675 (EDIS Doc. ID 887878) (Motion No. 1478-009) (herein, the “Motion”).

Samsung’s Motion has two major flaws with respect to infringement of the ’677 and ’675 Patents that prevent summary determination. *First*, Samsung’s Motion rests on the false presumption that the opinions proffered by its technical expert, Dr. Welch, can sustain Samsung’s burden of proof to establish infringement at the summary determination stage. But they cannot. Dr. Welch ignores factual evidence that clearly contradicts his opinion of the operation of Oura’s Gen. 4 ring, and additionally sets forth deeply flawed and unreliable testimony given that he opines that certain functionality in Oura’s Gen. 4 ring meets the claim requirements of the ’677 and ’675 Patents for purposes of infringement, but that the same functionality in Oura’s Gen. 1 ring does not meet these claim requirements of the ’677 and ’675 Patents for purposes of invalidity. This contrary evidence and the contradictions in Dr. Welch’s opinions together form a strong basis for impeachment of Dr. Welch, and they undermine the credibility of Samsung’s witness on an issue for which Samsung bears the burden of proof. Critically, as established by the authority cited herein, where there is a substantial reason to attack the credibility of opinion testimony (as there is here), such testimony does not form a basis for summary determination even in the absence of an opposing expert opinion; instead, the testimony is subject to cross-examination at the

¹ Complainants’ Motion with respect to the technical prong of the domestic industry requirement is not opposed.

[REDACTED]

evidentiary hearing. This weakness in the evidence cited by Samsung is alone reason to deny summary determination with respect to infringement.

Second, Samsung's Motion does not provide a basis for summary determination of infringement with regard to [REDACTED]. The parties agree that [REDACTED] [REDACTED] are ripe for adjudication in this Investigation, but Samsung never set forth infringement contentions for these products; Dr. Welch never set forth an infringement opinion with regard to these products in his expert report and first addressed [REDACTED] through inappropriate testimony at his deposition; and the remaining evidence proffered by Samsung establishes only broad similarity between the Oura Gen. 4 and [REDACTED] products, which does not establish that Samsung is entitled to summary determination of infringement. Samsung has no basis to proceed at this stage with a theory of representativeness, but even if it did, no expert has actually opined on representativeness or infringement by [REDACTED]. Summary determination of infringement by these products is therefore inappropriate.

These major flaws prevent Samsung from carrying its burden of proof with regard to infringement for the products it accuses, and at the very least establish that witness testimony should be heard at the evidentiary hearing. Accordingly, summary determination of infringement is inappropriate and Samsung's Motion should be denied.

II. LEGAL STANDARD

Infringement is a complainant's burden to prove by the preponderance of the evidence. *See Spansion, Inc. v. Int'l Trade Comm'n*, 629 F.3d 1331, 1349 (Fed. Cir. 2010). This is true even for alternative or redesigned products put forth for adjudication. *Certain Human Milk*

² [REDACTED]

[REDACTED]

Oligosaccharides and Methods of Producing the Same, Inv. No. 337-TA-1120, Comm’n Op. at 23 (June 8, 2020) (EDIS Doc. ID 712205) (“*Oligosaccharides*”).

The standard for summary determination at the ITC is frequently equated to the well-known standard for summary judgment applied by district courts: in each instance, “the evidence of the nonmovant is to be believed, and all justifiable inferences are to be drawn in his favor.” *See, e.g., Certain Carburetors and Products Containing Such Carburetors*, Inv. No. 337-TA-1123, Comm’n Op. at 5-6 (Oct. 28, 2019) (EDIS Doc. ID 692517) (quoting Federal Circuit cases concerning the standard for summary judgment).

Furthermore, it is firmly established that even unopposed opinion evidence does not compel summary judgment (or, therefore, summary determination) where factual evidence calls into question those opinions and invites cross-examination. In *Sartor v. Arkansas Natural Gas Corp.*, the Supreme Court reversed summary judgment on the basis of contrary factual evidence to unopposed expert opinions and concerns of bias, noting that “[i]t may well be that the weight of the evidence would be found on a trial to be with defendant[, b]ut it may not withdraw these witnesses from cross-examination, the best method yet devised for testing trustworthiness of testimony.” 321 U.S. 620, 627–28 (1944). As set forth by *Sartor*, “expressions of opinion [], even if entitled to some weight, have no such conclusive force that there is error of law in refusing to follow them [], whether addressed to a jury or to a judge or to a statutory board.” *Id.* at 627 (citation omitted). This standard has been more recently summarized after an extensive analysis of precedent as follows:

As such, an unopposed, favorable expert report will not automatically win a summary judgment motion for a moving party. However, consistent with *Donovan*, the expert report may allow a moving party to fulfill its initial burden of showing that the nonmoving party has failed to support its claim or failed to introduce a genuine issue of material fact necessitating a trial; such a showing

requires the nonmoving party to come forward with specific record evidence to show why a trial is necessary. Presumably this could take the form of an opposing expert opinion, but it could also be fulfilled by other record evidence which calls into question the basis for, or evidentiary value of, the expert testimony proffered by the moving party.

Estate of Thomas v. Fayette Cnty., 194 F. Supp. 3d 358, 368-69 (W.D. Pa. 2024) (emphasis added); see also *Typeright Keyboard Corp. v. Microsoft Corp.*, 374 F.3d 1151, 1159 (Fed. Cir. 2004) (“If the credibility of the movant’s witnesses is challenged by the opposing party and specific bases for possible impeachment are shown, summary judgment should be denied and the case allowed to proceed to trial”) (citing 10A Charles Alan Wright et al., *Federal Practice & Procedure* § 2726, at 446 (3d ed. 1998));³ *Brown v. County of Nassau*, 736 F. Supp. 2d 602, 621 (E.D.N.Y. 2010) (“even though the County has submitted no expert to contradict plaintiff’s ADA expert, a factfinder could still reject plaintiff’s expert testimony and find in favor of the County depending upon how the factfinder evaluated and weighed the expert’s testimony in light of all the evidence in the case.”).

Thus, uncontradicted expert testimony will not entitle its proponent to summary determination if there is record evidence which calls into question the credibility of that expert and the opinions they offer.

III. SAMSUNG CANNOT CARRY ITS BURDEN OF PROOF TO OBTAIN SUMMARY DETERMINATION CONCERNING THE OURA GEN. 4 RING

In view of the relevant law, summary determination on the ’677 and ’675 Patents is inappropriate even though Oura’s expert does not offer a noninfringement opinion, in view of clear factual evidence rendering Dr. Welch’s opinions unreliable and incorrect. At the least, the evidence

³ *Typeright* concerned fact witness testimony, but there is no reason the statement of law would be different for expert witness testimony, especially as *Typeright* cites *Sartor*, which concerns expert witness testimony, for this statement of law. See *Typeright*, 374 F.3d at 1159.

[REDACTED]

and conflicting opinions of Dr. Welch demonstrated herein establish a material dispute with respect to infringement that should be tested through cross-examination at the evidentiary hearing.

Each of the independent asserted claims of the '677 Patent—claims 1, 9 and 16—and each of the independent asserted claims of the '675 Patent—claims 13 and 20—includes a requirement that the processor be configured with capability to “refrain” from actions taken by an optical sensor or else “inactivate” that sensor:

[1.g]: “refrain from the emitting of the light, based at least in part on a determination that the second motion signal does not satisfy the specified condition”;

[9.f]: “refrain from the obtaining of the second information using the activated second sensor based at least in part on a determination that the first information satisfies a specified range”;

[16.e] “refrain from the obtaining of the second information based at least in part on a determination that the first information satisfies a specified condition.”

Ex. A ('677 Patent) at cls. 1, 9, 16.⁴

[13.f]: “in response to identifying that the motion of the electronic device included in the second information is more than a threshold motion, inactivating the at least one second sensor”;

[20.j]: “in response to identifying that the motion of the electronic device included in the second information is more than a threshold motion, inactivate the at least one second sensor.”

Ex. B ('675 Patent) at cls. 13, 20.

Dr. Welch—and Samsung’s Motion—points to the Oura Gen. 4 ring’s transition [REDACTED]

[REDACTED]

[REDACTED] as supposedly satisfying these claim limitations. *See* Ex. 1 (Welch Inf.

⁴ The lettering of these limitations (*e.g.*, [1.g]) is sometimes different in Samsung’s Motion from that used in Dr. Welch’s rebuttal report, which itself has different lettering than in Dr. Welch’s infringement report. To focus the inquiry, all claim limitation lettering used herein is that from Samsung’s Motion; regardless of the lettering used, the claim language being addressed is the same.

Rep.) at ¶¶ 396-402, 474-77, 506-08, 576-79, 645-47; Motion at 9, 13-15, 17-18, 21; Samsung SUMF Nos. 10, 20, 27, 36, 48.

But as explained herein, the evidence of record shows that the optical sensor of the Oura Gen. 4 ring clearly does not “refrain from the emitting of the light” or “inactivate” any sensor by [REDACTED] (limitations [1.g] of the ’677 Patent and [13.f] and [20.j] of the ’675 Patent), and Dr. Welch’s opinions with regard to all of the contested limitations of the ’677 Patent as well as additional limitations [13.c] and [20.g] of the ’675 Patent are contradicted by his opinions with regard to validity, thus rendering his opinions unreliable and unable to sustain Samsung’s burden of proof. Cross-examination should be permitted to examine these inconsistencies and the contrary evidence.

A. [REDACTED] *does not “refrain from the emitting of the light” or “inactivate” any sensor (limitations [1.g] of the ’677 Patent and [13.f] and [20.j] of the ’675 Patent)*

First, as Dr. Welch himself will acknowledge (as he must), optical measurements by the Oura Gen. 4 ring—whether heart rate measurements or SpO₂ measurements—are undertaken by the ring’s PPG sensor. *See, e.g.*, Ex. 1 (Welch Inf. Rep.) at ¶ 434 (“[REDACTED]

[REDACTED]

[REDACTED]”). As Dr. Welch notes, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Id. at ¶¶ 76-77. And while Dr. Welch occasionally refers to a “SpO₂ sensor,” it is clear that he means the SpO₂ measurements of the PPG sensor, and that these sensors are one and the same: “The Oura Ring 4 includes an optical photoplethysmography (PPG) sensor that operates as a heart rate monitor and a blood oxygen (SpO₂) sensor.” *Id.* at ¶ 76.

That there is only one optical sensor for optical measurements in the Oura Gen. 4 ring (*i.e.*, the PPG sensor) is key, because the clear (indeed, undisputed) evidence shows that [REDACTED]

[REDACTED]

[REDACTED] *See, e.g.*,
Ex. 3 (Mortazavi Reb. Rep.) at ¶ 147 ([REDACTED])

[REDACTED]

Dr. Welch does not address this deficiency [REDACTED]

[REDACTED]

See, e.g., Ex. 1 (Welch Inf. Rep.) at ¶ 400 (“

”).⁵ But limitation [1.g] of the ’677 Patent requires that the sensor “refrain from the emitting of the light,” rather than merely reduce its light emissions, and limitations [13.f] and [20.j] of the ’675 Patent require that the sensor be inactivated, not merely be reduced in functionality. The fact that the Oura Gen. 4 ring’s optical sensor continues to emit light and be active in order to measure heart rate means that these limitations are not met.

Thus, Dr. Welch’s assertions regarding [REDACTED] of Oura Gen. 4 ring does not satisfy Samsung’s burden of proof with respect to at least claims 1-4 (the asserted claims depending on independent claim 1) of the ’677 Patent or any asserted claim of the ’675 Patent.

B. There are irreconcilable contradictions in Dr. Welch’s opinions regarding limitations [1.g], [9.f], and [16.e] of the ’677 Patent

Additionally, Dr. Welch opines that the functionality of the Oura Gen. 1 ring does not meet the “refraining” limitations of the ’677 Patent. See, e.g., Ex. 2 (Welch Reb. Rep.) at ¶¶ 302-08.⁶ But in so doing, he contradicts himself and therefore creates a further factual dispute regarding infringement by the Oura Gen. 4 ring that prevents summary determination.

[REDACTED] Indeed, the relevant common transitions (*i.e.*, those implemented by both Gen. 1 and 4 rings and forming the basis of Samsung’s infringement theory) are illustrated as follows:

⁵ Dr. Welch is notably silent regarding the green LEDs, which he admits are a part of the sensor. See Ex. 1 (Welch Inf. Rep.) at ¶¶ 76-77 ([REDACTED]).

⁶ Dr. Welch does not argue that the Gen. 1 ring fails to disclose the “inactivate” limitations of the ’675 Patent.

[REDACTED]

(attached as Ex. C); *see* Ex. 1 (Welch Inf. Rep.) at ¶¶ 380 (G [REDACTED])
[REDACTED]
[REDACTED], 384 ([REDACTED])
[REDACTED]; Ex. 3 (Mortazavi Reb.
Rep.) at ¶¶ 147, 151, 195 ([REDACTED]), 154
([REDACTED]); 202 ([REDACTED])
[REDACTED]; 457 ([REDACTED])

[REDACTED]
[REDACTED]
[REDACTED]; Ex. D (Mortazavi Inv. Rep.) at ¶ 1462 ([REDACTED])
[REDACTED]; Ex. E (OURA1478_00001491) at -1496 ([REDACTED]).

Dr. Welch opines that [REDACTED] meets the various “refraining” limitations ([1.g], [9.f], and [16.e]) of the ’677 Patent. *See* Ex. 1 (Welch Inf. Rep.) at ¶¶ 396-402, 474-77, 506-08. But as shown above, the evidence of record establishes that not only does the Oura Gen. 1 ring also [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
Ex. D (Mortazavi Inv. Rep.) at ¶ 1462 (code citations omitted); Ex. 3 (Mortazavi Reb. Rep.) at ¶ 457 (same analysis [REDACTED]).

Herein lies the contradiction. If a motion condition that causes the Oura Gen. 1 ring [REDACTED] does not meet the “refraining” limitations, as Dr. Welch opines (*see* Ex. 1 at ¶¶ 302-08), then surely a motion condition that [REDACTED] will not meet the requirements of these “refraining” limitations.

⁷ As noted by Dr. Mortazavi, [REDACTED] *See* Ex. 3 (Mortazavi Reb. Rep.) at ¶ 202 (further comparing Gen. 1 and Gen. 4 code).

[REDACTED]

[REDACTED]

[REDACTED]

This is an irreconcilable contradiction set forth by Dr. Welch (*i.e.*, [REDACTED]

[REDACTED]

[REDACTED]), and the contradiction undermines his opinion on infringement and thereby prevents summary determination.

C. There are irreconcilable contradictions in Dr. Welch’s opinions regarding limitations [13.c] and [20.g] of the ’675 Patent

Dr. Welch sets forth contradictory testimony regarding the independent claims of the ’675 Patent as well, specifically with regard to limitations [13.c] and [20.g]. These are “activation” limitations, which require the optical sensor to be activated in response to movement being detected:

[13.c]: “activating at least one second sensor based on at least a part of the first information on the motion of the electronic device”;

[REDACTED]

[REDACTED]

[20.g] “determine whether to identify biometric information based on the motion of the electronic device.”

Ex. B (’675 Patent) at cls. 13, 20.

In opining that these limitations are satisfied by the Oura Gen. 4 ring, Dr. Welch opines that they are satisfied by [REDACTED] See Ex. 1

(Welch Inf. Rep.) at ¶¶ 548-64, 621-38 (“[REDACTED]

[REDACTED]”); *see also id.* at ¶ 549 ([REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

The Oura Gen. 1 ring performs [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] And yet

Dr. Welch opines that the Oura Gen. 1 ring does not meet these claim limitations. Ex. 2 (Welch

Reb. Rep.) at ¶¶ 400-408 (“[REDACTED]”).

[REDACTED]



Once again, Dr. Welch's invalidity opinions undermine his infringement opinions. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Dr. Welch therefore sets forth an irreconcilable contradiction that undermines his opinion on infringement and thereby prevents summary determination.

D. Irreconcilable contradictions are a foundational defect preventing Samsung from carrying its burden of proof on infringement

The contradictions laid bare above, regarding at least limitations [1.g], [9.f], and [16.e] of the '677 Patent and limitations [13.c] and [20.g] of the '675 Patent (*i.e.*, covering each asserted independent claim of the '677 and '675 Patents), serve as a strong basis of impeachment of Dr. Welch, and therefore Dr. Welch's opinion does not escape the requirement to be submitted to cross-examination and summary determination should not be granted. *See Typeright*, 374 F.3d at

1159 (“If the credibility of the movant’s witnesses is challenged by the opposing party and specific bases for possible impeachment are shown, summary judgment should be denied and the case allowed to proceed to trial”).

In effect, Dr. Welch’s opinions concerning validity themselves create a genuine dispute of material fact with regard to whether certain functionality of the Oura Gen. 4 ring that is common to the Oura Gen. 1 ring meets all required claim language of the asserted claims of the ’677 and ’675 Patents—Dr. Welch is effectively disagreeing with himself. And at the very least, Dr. Welch’s opinions on invalidity serve to negate his opinions on infringement, an issue on which Samsung bears the burden of proof; Samsung thus does not proffer proof sufficient to carry its burden without being subject to cross-examination. *See Sartor*, 321 U.S. at 628 (in view of unrebutted expert opinions, “[i]t may well be that the weight of the evidence would be found on a trial to be with defendant. But it may not withdraw these witnesses from cross-examination, the best method yet devised for testing trustworthiness of testimony.”).

Accordingly, in view of the contradictions in Dr. Welch’s opinions, and therefore the strong basis for impeachment, summary determination should be denied and the issue of infringement allowed to proceed to the evidentiary hearing where these contradictions may be tested through cross-examination.

E. Opposing summary determination on the basis of irreconcilable contradictions does not amount to a “practicing the prior art” defense

Oura concedes that there is no “practicing the prior art defense” to patent infringement. Rather, facts that establish that the same functionality that is accused of infringement is present in a product predating the asserted patent support anticipation: “it is axiomatic that that which would literally infringe if later anticipates if earlier.” *Bristol-Myers Squibb Co. v. Ben Venue Lab ’ys, Inc.*, 246 F.3d 1368, 1378 (Fed. Cir. 2001); *see also 01 Communique Lab., Inc. v. Citrix Sys.*, 889 F.3d

[REDACTED]

735, 742 (Fed. Cir. 2018) (it is permissible to argue that “if a claim term must be broadly interpreted to read on an accused device, then this same broad construction will read on the prior art”) (“*Communique*”). Indeed, *Communique* cited with approval two prior Federal Circuit cases that upheld grants of summary judgment of invalidity on the basis that the accused devices were shown to be prior art. *Id.* at 743 (citing *Vanmoor v. Wal-Mart Stores, Inc.*, 201 F.3d 1363, 1366 (Fed. Cir. 2000); *Evans Cooling Sys., Inc. v. Gen. Motors Corp.*, 125 F.3d 1448, 1451 (Fed. Cir. 1997)).

Following the guidance of *Communique*, Oura intends to show that the same functionality now accused of infringement by Samsung was present in its anticipating Gen. 1 rings—this will prove anticipation and therefore invalidity. *See Communique*, 889 F.3d at 742-43; *Vanmoor*, 201 F.3d at 1366; *Evans Cooling*, 125 F.3d at 1451. Indeed, this Court has already recognized that this is an argument that Oura may make. *See* July 2, 2026 Case Management Conference Transcript at 19:21-21:5 (“I think that’s probably where [Oura] is going with this argument”).

But Samsung now apparently seeks to shield its expert from being confronted with the inconvenient fact that the same relevant functionality exists in Oura’s Gen. 1 and Gen. 4 rings by disposing of the issue of infringement upon summary determination—then, freed from needing to prove infringement at the evidentiary hearing, Samsung’s expert would be able to challenge aspects of the Gen. 1 functionality and its application to the claim language. The Federal Circuit has noted that, in cases where the accused features are present in the prior art, it would take “exceptional linguistic dexterity to simultaneously establish infringement and evade invalidity” (*Communique*, 889 F.3d at 742-43), but this task could be made easier for Samsung if summary determination is granted.

[REDACTED]

In essence, through summary determination on infringement, Samsung would have an easier time doing what has been disparaged by the Federal Circuit: “A patent may not, like a ‘nose of wax,’ be twisted one way to avoid anticipation and another to find infringement.” *Amazon.com, Inc. v. Barnesandnoble.com, Inc.*, 239 F.3d 1343, 1351 (Fed. Cir. 2001) (citations omitted).

But the flaw in Samsung’s approach—and why summary determination in these circumstances is inappropriate—is that in view of the inherent contradictions put forth by its expert and detailed above, Samsung exposes its expert to a serious credibility challenge, and one that prevents summary determination from being granted. *Sartor*, 321 U.S. at 627–28; *Estate of Thomas*, 194 F. Supp. 3d at 368-69.

This is thus not a “practicing the prior art” defense; it is a defense to summary determination built upon the foundational contradictions in Samsung’s expert’s opinions that prevent Samsung from putting forth an expert opinion credible enough to carry its burden of proof. These contradictions—and therefore Dr. Welch’s credibility—should be evaluated through cross-examination at the evidentiary hearing without removing infringement from the inquiry.

IV. ADDITIONAL FAILURES OF PROOF PREVENT SUMMARY DETERMINATION REGARDING [REDACTED] [REDACTED] [REDACTED] [REDACTED]

While the parties agree that Oura’s [REDACTED] have been presented for adjudication, summary determination of infringement of the ’677 and ’675 Patents should not be granted with regard to Oura’s [REDACTED] for at least the same reason as it should not be granted for Oura’s Gen. 4 ring: in view of the contradictions in Dr. Welch’s testimony, there is a strong basis for impeachment that precludes summary determination.

But additionally, summary determination of infringement with regard to [REDACTED] [REDACTED] should not be granted because Dr. Welch offered no opinions about these products in his expert report on infringement, and these are not products for which Samsung has ever set forth

[REDACTED]

[REDACTED]

infringement contentions. Indeed, [REDACTED] are not addressed or even mentioned in Dr. Welch's opening expert report at paragraphs 440-647 (the paragraphs cited in Samsung's SUMF Nos. 1, 2, 28, 29). *See generally*, Ex. 1 at ¶¶ 440-647. Laying bare this point, at paragraph 199 of his report, Dr. Welch makes clear that it is "my opinion that the Oura Ring 4 and the Accused Product directly and indirectly infringe each of the Asserted Infringement Claims of the '359, '677, and '675 Patents for the reasons set forth in the element-by-element analysis that follows." *Id.* at ¶ 199; *see also id.* at ¶ 3 (the "Accused Product" is "the Oura Ring 4, including any colorways, finishes, and ceramic variants thereof, and its corresponding software applications, including the Oura App"). Simply put, Dr. Welch does not address [REDACTED] in his report.

The only infringement opinion regarding [REDACTED] that has been even arguably set forth by Dr. Welch was a series of *ipse dixit* statements of representativeness in his deposition, almost entirely upon redirect questioning from Samsung's lawyers on the day after expert discovery closed and not in response to any questions from Oura. But as set forth by Oura's Motion to Strike Deposition Testimony (EDIS Doc. ID 887862) (Motion No. 1478-008), such shoehorning of opinions at the end of expert discovery robbed Oura of the opportunity for its own expert to consider these opinions, offer rebuttal expert opinions, and to cross-examine Samsung's witnesses with some amount of preparation, and accordingly this testimony should be struck. Therefore, Samsung's citations to Dr. Welch's rough deposition testimony at Ex. 14 at 175:22-176:3 and Ex. 15 at 133:20-134:3, 134:11-140:5⁹ (*see* Samsung SUMF Nos. 1, 2, 28, 29) should be afforded no weight.

⁹ These passages of the "rough" transcripts (Samsung's Motion Ex. 14 at 175:22-176:3 and Ex. 15 at 133:20-134:3, 134:11-140:5) correspond to or fall within the passages of the final transcripts of the same deposition cited in Oura's Motion to Strike Deposition Testimony (EDIS Doc. ID 887862) (Motion No. 1478-008) at Ex. B at 186:15-18 and Ex. C at 379:17-386:2.

[REDACTED]

The lack of infringement opinion from Samsung’s witnesses is fatal, and certainly does not support summary determination in Samsung’s favor—where summary determination is granted in such circumstances, it is against the complainant. *See Certain Crafting Machines and Components Thereof*, Inv. No. 337-TA-1426, Init. Det. at 40 (Jan. 21, 2026) (Cheney, Chief ALJ) (EDIS Doc. ID 869643) (“Cricut has not provided any allegations or evidence that the redesigned products, which are ripe for adjudication, infringe the asserted patents. [] Consequently, Cricut cannot satisfy its burden of proof on infringement, and HTVRONT is entitled to summary determination of non-infringement.”); *see also Oligosaccharides*, Inv. No. 337-TA-1120, Comm’n Op. at 24 (finding no infringement after noting that “Glycosyn presented no expert evidence to establish the presence of a lacZ gene or lacZΩ fragment in the TTFL12 strain, and thereby infringement by that strain”) (citing *Centricut, LLC v. Esab Group, Inc.*, 390 F.3d 1361, 1370 (Fed. Cir. 2004) for its finding of no infringement where the patent owner did not support its contentions with an expert opinion).

And aside from Dr. Welch’s inappropriate statements at deposition, there are only two bases of evidence that Samsung points to as supposedly supporting summary determination of infringement by [REDACTED]: the fact testimony of Mr. Michael Larson, Oura’s Director of Firmware and certain high-level statements of Oura’s expert witness, Dr. Mortazavi. Neither establishes that summary determination of infringement should be granted in Samsung’s favor.

Regarding the deposition testimony of Mr. Larson, which Samsung cites without explanation in its SUMF and does not address in its Motion, his testimony at 11:13-12:10 simply establishes that he was prepared to testify with regard to [REDACTED]; his testimony at 73:19-74:5 and 75:15-25 establishes that [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]. See Ex. 8 at 11:13-12:10, 73:19-74:5, 75:15-25. Mr.

Larson also testified that [REDACTED]

[REDACTED] *Id.* at 74:21-25. Mr. Larson does not establish infringement by

[REDACTED] address the specific functionality of the Oura Gen. 4 accused of infringement,

or [REDACTED]
[REDACTED]

Regarding Dr. Mortazavi, he similarly sets forth a general opinion that [REDACTED]
[REDACTED]

See Samsung SUMF Nos. 1, 2, 28, 29 (citing Ex. 3 (Mortazavi Reb. Rep.) ¶¶ 382-384, 552-554; Ex. 13 (Mortazavi Rough Tr.) at 148:19-156:1). But whether in this generalized statement in his expert report or statements to the same effect at deposition, the mere alleged fact of generally

[REDACTED]
[REDACTED] does not establish that

[REDACTED] have the same particular functionality as accused of infringement with respect to Oura's Gen. 4 ring.

Furthermore, it must be appreciated that Samsung and Dr. Welch never put forth an infringement or representativeness theory for [REDACTED]—Dr. Mortazavi is entitled for his opinions to be rebuttal opinions, and if Samsung is now proffering a theory of representativeness, Dr. Mortazavi should have been able to interrogate this according to the usual procedure of expert reports. But by this theory coming forth for the first time in the inappropriate deposition testimony of Dr. Welch (after Dr. Mortazavi's own deposition), and now in Samsung's Motion, Dr. Mortazavi never had a chance to provide a rebuttal opinion on this issue.

[REDACTED]

Thus, Dr. Mortazavi does not supply the missing elements of proof that Samsung lacks. His generalized statements do not establish representativeness for purposes of an infringement theory that Samsung never put forth sufficient to satisfy the standard for summary determination; at a minimum, given that Samsung bears the burden on infringement and no expert has opined regarding infringement by [REDACTED], summary determination of infringement should not be granted and to the extent that Samsung may now present a theory of infringement for the [REDACTED] products, Dr. Mortazavi's precise opinions should be a topic for the evidentiary hearing.

V. INDEPENDENT CLAIM 13 OF THE '675 PATENT IS A METHOD CLAIM THAT CANNOT BE DIRECTLY INFRINGED BY THE ACCUSED PRODUCTS

Finally, although independent claim 13 and dependent claim 20 of the '675 Patent are method claims, Samsung's motion has not even alleged, let alone proven, any theory of indirect infringement. The Accused Products are indisputably physical rings, not methods (*see, e.g.*, Ex. 1 (Welch Inf. Rep.) ¶ 74 ("The Oura Ring 4 [] is a wearable device that is worn on a user's finger."); Ex. 3 (Mortazavi Reb. Rep.) at ¶ 130 ("[REDACTED] [REDACTED] [REDACTED]")), and a method cannot be imported in violation of Section 337—rather, a violation on the basis of a method claim can only occur as a result of the complainant proving indirect infringement. *See Suprema, Inc. v. Int'l Trade Comm'n*, 796 F.3d 1338, 1348-52 (Fed. Cir. 2015) ("Section 337 could fairly reach contributory infringement... a violation of Section 337 may arise from an act of induced infringement"); *see also, Ericsson, Inc. v. D-Link Sys.*, 773 F.3d 1201, 1222 (Fed. Cir. 2014) ("none of our decisions have found direct infringement of a method claim by sales of an end user product which performs the entire method, and we decline to do so here"). Importation or sale of the Accused Products are not acts of direct infringement of these method

[REDACTED]

claims, and there is nothing in Samsung's Motion that shows any act of indirect infringement. Indeed, indirect infringement is not even alleged in Samsung's Motion.

Absent even an allegation, let alone proof, of indirect infringement of the asserted method claims (claims 13 and 20 of the '675 Patent), there is no basis for summary determination of infringement of these claims.

VI. CONCLUSION

Given the complexity of the relevant technology of the '677 and '675 Patents, infringement is certainly not clear enough to be able to be determined without expert opinion—indeed, even Samsung does not argue for such an approach. *See Centricut*, 390 F.3d at 1369-70 (“typically expert testimony will be necessary in cases involving complex technology”) (citation omitted). And here, Samsung's expert Dr. Welch has ignored clear factual evidence of noninfringement and adopted unresolvable contradictions in attempting to preserve validity but find infringement, which leads to Samsung's expert not providing a credible basis to find infringement—in essence, Dr. Welch's opinions on validity undermine his opinions on infringement and create at least a dispute of material fact that should be tested in cross-examination.

Furthermore, Samsung has set forth absolutely no opinion, or even contention, of infringement by [REDACTED]. The mere fact that Oura's expert found no noteworthy differences [REDACTED]

[REDACTED]

[REDACTED] And Dr. Welch's bare *ipse dixit* statements of representativeness on redirect examination on the day after expert discovery closed should be struck (as set forth by Oura's Motion to Strike, EDIS Doc. ID 887862), and therefore also do not form an appropriate basis for summary determination of infringement by these products. There is therefore, at a minimum, a genuine issue of material fact

[REDACTED]
[REDACTED]
regarding whether the Oura Gen. 4 ring is representative [REDACTED]
[REDACTED]

Finally, claims 13 and 20 of the '675 Patent are method claims for which Samsung has not alleged indirect infringement, and accordingly these claims cannot sustain summary determination of infringement.

Accordingly, for the reasons presented herein, Samsung's Motion should be denied with respect to infringement of the '677 and '675 Patents.

Ground Rule 1.7 Certification

Pursuant to Ground Rule 1.7, the undersigned certifies that this response complies with the word limit requirements of Ground Rule 5.6.2.1 (under 10,000 words). Specifically, the word count of the word-processing system used to prepare this filing is 6,334 words.

Dated: July 23, 2026

Respectfully submitted,

s/ Jasjit S. Vidwan

Jasjit S. Vidwan

James A. Fussell, III

Saqib J. Siddiqui

Bryan C. Nese

Michael L. Lindinger

Tiffany A. Miller

Clark S. Bakewell

Alison T. Gelsleichter

Tariq Javed

Amanda E. Stephenson

Seth W. Bruneel

Courtney Krawice

Séké Godo

Angeline Premraj

Paul Choi

So Ra Ko

Jaspreet Momi

Jennifer Weinberg

MAYER BROWN LLP

1999 K Street, NW

Washington, DC 20006-1101

Tel.: +1 202.263.3000

Robert G. Pluta

Nicholas H. Ciulla

MAYER BROWN LLP

71 S. Wacker Drive

Chicago, IL 60606

Tel.: +1 312.782.0600

*Counsel for Respondents Ouraring Inc. and
Oura Health Oy*

Oura-ITC@mayerbrown.com

EXHIBIT D

REDACTED IN ITS ENTIRETY

EXHIBIT E

REDACTED IN ITS ENTIRETY

EXHIBIT F

REDACTED

PUBLIC VERSION

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of

CERTAIN WEARABLE DEVICES

Inv. No. 337-TA-1478

RESPONDENTS' PRE-HEARING BRIEF

Oura Gen. 4 ring	Ring 5	
Biometric Sensors:  RX-0238C at OURA1468_00029607-10	Biometric Sensors:  RX-0239C at OURA1468_00023858-59	Biometric Sensors:  RX-0237C at OURA1468_00255137

Additionally, hearing testimony from Mr. Larson, Mr. Christophy, and/or Dr. Mortazavi will establish that Ring 5 and [REDACTED] are wearable electronic devices for detecting biometric information. JDX-0007C ¶¶130-31, 382-83, 552-53, 652.

b) *Oligosaccharides* Factor 2: Ring 5 and [REDACTED] Have Been Imported

Both Ring 5 and [REDACTED] have been imported. Oura made available to Samsung physical samples of Ring 5 and [REDACTED] in the United States on March 31, 2026, and these samples had previously been imported. RX-0229 (May 29, 2026 Production Email).

Furthermore, the parties have stipulated that Ring 5 (as “[REDACTED] and [REDACTED] have been imported. JX-0074C (importation stipulation) at 1, Exhibit A.

2. Ring 5 and [REDACTED] Do Not Infringe the Asserted Claims

Samsung has put forth no contention or evidence of infringement by these rings and accordingly cannot carry its burden of proof. *See Certain Crafting Machines and Components Thereof*, Inv. No. 337-TA-1426, ID at 40 (Jan. 21, 2026) (Cheney, Chief ALJ) (EDIS Doc. ID 869643) (a complainant cannot carry its burden of proof on redesigned products without evidence of infringement). Dr. Mortazavi and Mr. Larson will testify that although Ring 5 and [REDACTED] have broadly similar functionality to Oura's Gen. 4 ring, the software and hardware functionality is not the same; given this, and given the lack of any theory of representativeness, Samsung will not be able to carry its burden of proof for these reasons as well.

B. Claims 13 and 15 of the '675 Patent Are Invalid in View of the Prior Art

There are five asserted grounds of prior art-based invalidity that render invalid claims 13 and 15 of the '675 Patent:

Invalidity Ground	Basis	Applicable Claims
Ground 1	Anticipation in View of Oura Ring. Gen 1	13, 15
Ground 2	Anticipation in View of Hong	13, 15
Ground 3	Obviousness in View of Hong and Utter II	13, 15
Ground 4	Anticipation in view of Utter II	13
Ground 5	Obviousness in View of Utter II and Hong	13, 15

These five grounds of invalidity are explained in detail herein.

1. Overview of Prior Art References

The Oura Ring Gen. 1 was Oura's first generation of smart ring, and was a wearable device worn on a user's finger. JDX-0001C ¶¶1350-1353. This smart ring used physiological data signals to calculate deep sleep, light sleep, REM sleep, and awake states, including by using an optical sensor, an accelerometer, and a temperature sensor. RX-0023. As will be established in Section

the specified condition,” as required by claim element [1.g], or “refrain from the obtaining of the second information using the activated second sensor based at least in part on a determination that the first information satisfies a specified range,” as required by claim element [9.f]. As Dr. Welch must admit upon cross-examination, the state transition alleged by Samsung to meet these limitations [REDACTED] [REDACTED]

[REDACTED]. Thus, as a result of this state transition, the optical sensor does *not* “inactivat[e] the at least one second sensor.”

Second, Samsung’s expert, Dr. Welch, cannot provide credible opinions sufficient to sustain Samsung’s burden of proof because he has contradictory opinions with regard to invalidity in view of Oura’s Gen. 1 ring, which has substantially similar state transitions as are accused. Specifically, Dr. Welch opines that the Oura’s Gen. 1 ring’s transition [REDACTED] (or potentially [REDACTED] state) does *not* meet the requirements of claim limitations [1.g] and [9.f], whereas the Gen. 4 ring’s transition from the [REDACTED] state (or potentially [REDACTED] state) does—a contradictory opinion, given that, as Dr. Mortazavi and Mr. Larson will testify, the code is [REDACTED]. JDX-0007C ¶¶147, 151, 195, 202. Dr. Welch’s invalidity opinions undermine his infringement opinions, and he will not be able to help Samsung carry its burden of proof.

2. Ring 5 and [REDACTED] Do Not Infringe the Asserted Claims

Samsung has put forth no contention or evidence of infringement by these rings and accordingly cannot carry its burden of proof. *See Certain Crafting Machines*, Inv. No. 337-TA-1426, ID at 40. Dr. Mortazavi and Mr. Larson will testify that although Ring 5 and [REDACTED] have broadly similar functionality to Oura’s Gen. 4 ring, the software and hardware functionality is not

the same; given this, and given the lack of any theory of representativeness, Samsung will not be able to carry its burden of proof for these reasons as well.

B. Claims 1-3 and 9 of the '677 Patent Are Invalid in View of the Prior Art

There are four asserted grounds of prior art-based invalidity that render invalid claims 1-3 and 9 of the '677 Patent:

Invalidity Ground	Basis	Applicable Claims
Ground 1	Anticipation in view of Oura Ring Gen. 1	1-3, 9
Ground 2	Anticipation in view of Ahmed486	1-3, 9
Ground 3	Anticipation in view of Presura	1, 9
Ground 4	Obviousness in view of Presura and Patel	2, 3

These four grounds of invalidity are explained in detail herein.

1. Overview of Prior Art References

The Oura Ring Gen. 1 was Oura's first generation of smart ring, and was a wearable device worn on a user's finger. JDX-0001C ¶¶1350-1353. This smart ring used physiological data signals to calculate deep sleep, light sleep, REM sleep, and awake states, including by using an optical sensor, an accelerometer, and a temperature sensor. RX-0023. As established in Section IV.B.2, *supra*, the Oura Ring Gen. 1 was in public use and/or available to the public at least prior to August 12, 2015, and accordingly qualifies as prior art to the '677 Patent under at least 35 U.S.C. § 102(a).

U.S. Patent Application Publication No. 2014/0073486 to Ahmed ("Ahmed486") (RX-0016) was filed on September 4, 2013 and published on March 13, 2014, and therefore qualifies as prior art to the '677 Patent under at least 35 U.S.C. § 102(a) and/or (b). Ahmed486 discloses a "wearable physiological measurement system" that includes "a plurality of light emitters for emitting light toward the user's skin, a plurality of light detectors for receiving light reflected from the user's skin, a motion sensor for detecting a motion of the user, and a processing module

[REDACTED]. *Id.* In fact, t [REDACTED]
[REDACTED]
[REDACTED]. *Id.*

Thus, Dr. Welch’s opinions relating to dynamic sensing in the Oura Ring 4 do not meet the elements of claim 4. RDX-0032C, ¶¶98, 99 (opining that Dr. Welch’s reliance on Simon Ratner’s testimony on the application software, which runs on, for example, a user’s mobile phone, does not provide evidence that the Oura Ring 4 infringes claim 4).

2. Ring 5 and [REDACTED] Do Not Infringe the Asserted Claims

Samsung has put forth no contention or evidence of infringement by these rings and accordingly cannot carry its burden of proof. *See Certain Crafting Machines*, Inv. No. 337-TA-1426, ID at 40. Dr. Mortazavi and Mr. Larson will testify that although Ring 5 and [REDACTED] have broadly similar functionality to Oura’s Gen. 4 ring, the software and hardware functionality is not the same; given this, and given the lack of any theory of representativeness, Samsung will not be able to carry its burden of proof for these reasons as well.

B. The Technical Prong of the Domestic Industry Inquiry is Not Met

Samsung’s alleged DI products do not practice either claims 1 or 4 of the ’359 Patent for the reasons explained herein.

- a) The Asserted DI Products do not meet the limitations of claim element [1.f]

The Asserted DI Products do not practice limitation [1.f], which requires “a select portion of the biological signal.”

As discussed above, the applicants for the ’359 Patent amended this limitation to include the “select” modifier to the “select portion” element to make clear that the claim does not include using the full biological signal obtained during a select period. JX-0005 at SAMS382-0002902;



Mapping (RDX-0036C, ¶303 (citing RX-0255C (annotated by Dr. Warren)))

While [REDACTED] a POSITA may recognize as an insulating material, a POSITA would not recognize [REDACTED] [REDACTED]. RDX-0032C, ¶640. Nor does the intrinsic evidence disclose that the fourth insulating layer may include a plurality of layers. *Id.* (citing JX-0004, 5:52-56).

Accordingly, Samsung has failed to demonstrate that the Oura Ring 4 infringes dependent claim 9.

2. Ring 5 and [REDACTED] Do Not Infringe the Asserted Claims

Oura's arguments with regard to Oura's Gen. 4 ring also apply to the Ring 5 and [REDACTED] but additionally arguments apply for these particular products, as was set forth in Oura's motion for summary determination. *See* EDIS Doc. ID 887851.

- a) Samsung has put forth no infringement contentions or evidence of infringement

Samsung has put forth no contention or evidence of infringement by Ring 5 or [REDACTED] and this basis alone it cannot carry its burden of proof on infringement for either product. *See Certain Crafting Machines*, Inv. No. 337-TA-1426, ID at 40.

- b) Ring 5 does not infringe the asserted claims

As Dr. Mortazavi will testify, there are at least two reasons why the Ring 5 does not infringe claims 7 or 9 of the '789 Patent.

First, the Ring 5 does not meet claim element [7.o], which requires that the second insulating layer for the flexible PCB portions have a “second thickness thinner than the first thickness” of the second insulating layer for the rigid PCB portions. Rather, [REDACTED] [REDACTED]. JDX-0007C ¶¶662-64. This is shown by an annotated version of the [REDACTED] PCB stackup diagram:



Id. ¶¶663 (annotating a color version of RX-0258C to show [REDACTED]); RX-0169 at OUR1478_00014259 (showing [REDACTED]).

First, the Ring 5 does not meet claim element [7.q], which requires a “second material” in the third insulating layer of the flexible PCB portions that is different from the “first material” in the third insulating layer of the rigid PCB portions. Dr. Mortazavi showed that the [REDACTED]

[REDACTED] JDX-0007C

¶¶667-70. This is shown by an annotated version of the [REDACTED] PCB stackup diagram:



Id. ¶669 (annotating a color version of OURA1478_00006316).

c) [REDACTED] does not infringe the asserted claims

[REDACTED] also does not infringe claims 7 or 9 of the '789 Patent, as it does not meet the requirement of claim element [7.o]. Dr. Mortazavi will show that the [REDACTED]

[REDACTED]

[REDACTED]. JDX-0007C ¶¶677-79. This is shown by an annotated version of the [REDACTED]

PCB stackup diagram:



Id. ¶678 (annotating RX-0151C). The [REDACTED] can also be seen in the scanning electron microscope images of the [REDACTED] PCB:



RX-0259C.

B. The Technical Prong of the Domestic Industry Inquiry is Not Met

Samsung's alleged DI products do not practice claim 6 of the '789 Patent for the reasons explained herein. Claim 6 depends on independent claim 1, so the non-practice of elements of claim 1 shows non-practice of claim 6.

EXHIBIT G

REDACTED IN ITS ENTIRETY

EXHIBIT H

REDACTED IN ITS ENTIRETY

EXHIBIT I

REDACTED

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of

CERTAIN WEARABLE DEVICES

Inv. No. 337-TA-1478

COMPLAINANTS' PRE-HEARING BRIEF

	construction was adopted.
“third period of time” (’675 Patent, Claim 15)	Not indefinite. No further construction is needed at this point.
“the biometric signal” (’359 Patent, Claim 14)	The claim term “the biometric signal” should correctly read “the biological signal,” which is a signal associated with biological information of the user.

III. JURISDICTION

The Commission has subject matter jurisdiction over certain acts of unfair importation. 19 U.S.C. § 1337(a)(1)(B)(i); *see also Amgen, Inc. v. Int’l Trade Comm’n*, 902 F.2d 1532, 1536 (Fed. Cir. 1990). The Commission has *in rem* jurisdiction over products that have been imported into the US. *Sealed Air Corp. v. Int’l Trade Comm’n*, 645 F.2d 976, 985 (C.C.P.A. 1981).

The Respondents have stipulated that the Accused Products at issue in this Investigation were manufactured abroad and imported into the US. *See* EDIS ID 883875. For example, the Respondents stipulate that since December 12, 2025, Respondents “or one or more of its U.S. subsidiaries have imported, sold for importation, and/or sold after importation into the United States at least one unit of [the Accused Products]” and that Respondents “do not and will not dispute that the importation requirement within the meaning of 19 U.S.C. § 1337(a)(1)(B) is satisfied.” *Id.* Accordingly, the importation requirement has been satisfied in this Investigation as to the Accused Products.

But as explained in Samsung’s Opposition to Oura’s MSD (EDIS ID 889193) (“Samsung’s MSD Opposition”), Ring 5 and [REDACTED] should be excluded from adjudication because Oura fails to meet its burden of satisfying three of the four *Oligosaccharides* factors. Samsung’s MSD Opposition, 13; *Certain Human Milk Oligosaccharides & Methods of Producing the Same* (“*Oligosaccharides*”), Inv. No. 337-TA-1120, Comm’n Op., 2020 WL 3073788, at *11 (June 8,

2020).

First, as to importation, Oura's discovery responses stated that Ring 5 would be [REDACTED]. *Id.* Oura's reliance on the parties' import stipulation, filed on June 1, 2026, after the close of fact discovery, is misplaced, as it fails to timely correct Oura's misleading discovery responses. *Id.*

Second, as to Ring 5 and [REDACTED] being sufficiently fixed, Oura's corporate witness testimony suggesting otherwise, that Ring 5's design was always evolving and [REDACTED] was [REDACTED]. *Id.* at 14-15. This failure to provide "fair notice that these products were at issue, or show that these products were sufficiently fixed during fact discovery" warrants declining adjudication. *See Certain Portable Battery Jump Starters & Components Thereof (II)*, Inv. No. 337-TA-1359, Comm'n Op., 2024 WL 4145130, at *26 (July 5, 2024).

Third, as to sufficient discovery, the crucial question is whether "the timing of the production deprived [complainant] of the opportunity to develop infringement contentions, to obtain expert opinions, and to prepare for trial on that product." *Certain Unmanned Aerial Vehicles & Components Thereof*, Inv. No. 337-TA-1133, Comm'n Op., 2022 WL 20402976, at *35 (Mar. 1, 2022). This factor weighs decisively against adjudication because Oura failed to timely produce discovery sufficient to permit Samsung to analyze infringement of Ring 5 and [REDACTED]. Samsung's MSD Opposition, 15. While Oura cited the technical materials it produced for Ring 5 and [REDACTED] before the last day of fact discovery, none of those materials provided the information needed to evaluate the relevant internal PCB structures of Ring 5 and [REDACTED] for the '789 Patent. *Id.*, 18. Oura waited until the last day of fact discovery to finally produce teardown images of Ring 5 and [REDACTED] PCBs, but this was too little too late, as it failed to give Samsung any opportunity to analyze those images before its final infringement contentions were due. *Id.*,

17. Critically, Oura failed to produce the most important technical discovery that Samsung needed to actually assess infringement—physical samples of Ring 5 or [REDACTED] for Samsung to teardown, despite such samples being specifically requested by Samsung’s Request for Production. *Id.*, 16.

IV. U.S. PATENT NO. 10,231,675

A. The Accused Products Infringe the ’675 Patent²

Samsung’s expert Dr. Welch and the evidence will demonstrate that the Accused Products infringe Claims 13 and 15 of the ’675 Patent and Oura has offered no rebuttal expert opinion or evidence demonstrating otherwise.

Oura’s attorneys argue, for the first time in Opposition to Samsung’s MSD Regarding Infringement, that method Claims 13 and 15 are not infringed because Samsung fails to show proof of actual use or performance of the method steps. EDIS ID 889195, 20-21. Oura’s position lacks credibility. It is beyond question that the Accused Products perform each step of method Claims 13 and 15 when worn in the ordinary course by a user. Oura provided extensive evidence in its affirmative -1398 and -1468 Investigations of its own use and testing in the United States in alleging it satisfied the DI requirement in those cases. Oura’s own testing and use constitutes direct infringement.³

Before its attorney argument, all that Oura and its expert, Dr. Moratzavi, mustered in opposition was a faulty “practicing the prior art” defense based on a legally improper comparison

² The analysis below focuses on Ring 4. But both parties’ experts agree that Ring 4 is representative of newer Oura products such as Ring 5 and [REDACTED] with no differences that are material to infringement. JDX-0007C, ¶¶552-54.

³ In fact, Oura’s activities regarding the Accused Products were the entire basis behind its economic domestic industry arguments in the -1468 Investigation. *See, e.g.*, EDIS ID 886733. Moreover, Oura advertises that the Ring 4 uses red and IR LEDs to measure SpO2 levels during sleep. JDX-0007C, ¶¶88. Oura’s advertising of the patented method, inducing users to use the patented method to measure SpO2 during sleep, constitutes induced infringement.

EXHIBIT J

REDACTED IN ITS ENTIRETY

EXHIBIT K

REDACTED IN ITS ENTIRETY

CERTIFICATE OF SERVICE

Investigation No. 337-TA-1478

The undersigned certifies that on August 31, 2026, true and correct copies of the foregoing document were served upon the following parties as indicated below:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, SW, Room 112 Washington, DC 20436	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☒ Via Electronic Filing (EDIS) ☐ Via Electronic Mail
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, D.C. 20436 Email: JohnsonHines1478@usitc.gov	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☒ Via Electronic Filing (EDIS) ☒ Via Electronic Mail
<i>Counsel for Respondents Ouraring Inc. and Oura Health Oy</i> Jasjit S. Vidwan James A. Fussell, III Saqib J. Siddiqui Bryan C. Nese MAYER BROWN LLP 199 K. Street NW Washington, DC 20006 Tel: 202-263-5282 Robert G. Pluta Nicholas H. Ciulla MAYER BROWN LLP 71 S. Wacker Drive Chicago, IL 60606 Tel: 312-782-0600 Email: Oura-ITC@mayerbrown.com	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☐ Via Electronic Filing (EDIS) ☒ Via Electronic Mail

/s/ Brian A. Treggs

Brian A. Treggs
Senior IPT Specialist
O'Melveny & Myers LLP
400 South Hope Street
Los Angeles, CA 90071